

NOTICE OF REFERRAL

MISCONDUCT IN PUBLIC OFFICE

Metropolitan Police Service — Serious and Organised Crime Command
CPS Special Crime Division | NCA Economic Crime Command

Referral filed	16 March 2026
Referred by	Nadia Zahmoul
Date of birth	27 April 1969
Email	nadia@rosekross.com
Telephone	+44 (0)7913 328 615
Address	35 Queens Gate Gardens, Flat 7, London SW7 5RR
Diagnoses	Autism Spectrum Condition (DSM-5: 299.00 / ICD-10: F84.0) — CLAAS, NHS, June 2025 PTSD (DSM-IV: 309.81) — treating since 2011 (Professor Gerald Libby FRCP FRCPsych)
Clinical warning	"Nadia can communicate using sophisticated vocabulary which can generate the false impression that she is managing better than she is." — CLAAS, NHS, July 2025
Proceedings	BV20D01752 (Family Division) BL-2024-001217 (Chancery) CA-2024-001342 (Court of Appeal) AC-2025-LON-004293 (Administrative Court — JR)
Evidence archive	379 indexed contemporaneous records. Master Index v7. GitHub: https://github.com/nadiazahmoul/JR-Zahmoul-v-SSJ-HMCTS-Archive
JR status	Permission refused by Collins Rice J, 11 March 2026 (TWM). CPR 3.1(7) revocation application filed 12 March 2026. This referral is not conditional on any JR outcome.

1. NATURE OF THIS REFERRAL

This is a formal criminal referral. It is filed with the Metropolitan Police Service Serious and Organised Crime Command, the CPS Special Crime Division, and the NCA Economic Crime Command on 16 March 2026.

This referral concerns misconduct in public office, a common law offence under English law. It does not concern the merits of any judicial decision. It concerns the administrative conduct of public officers — court clerks, HMCTS administrators, and a Family Division judge acting in an administrative capacity — over a period of more than two years.

A pre-filing notice was prepared on 10 March 2026. It is not served. This Notice of Referral replaces it. The referral is filed without prior notice to any subject of the referral, and without condition.

This referral is made independently of the Judicial Review proceedings in AC-2025-LON-004293. The permission refusal of 11 March 2026 does not affect it. The criminal conduct documented here is not a matter for administrative or judicial review — it is a matter for police investigation.

2. LEGAL FRAMEWORK

The offence of misconduct in public office is a common law offence. The elements, as confirmed in Attorney General's Reference (No 3 of 2003) [2004] EWCA Crim 868, are:

- A public officer acting as such;
- Who wilfully neglects to perform their duty and/or wilfully misconducts themselves;

- (c) To such a degree as to amount to an abuse of the public's trust in the office holder;
- (d) Without reasonable excuse or justification.

All four elements are satisfied on the facts of this referral.

Public officers. The subjects of this referral are: MacDonald J (Family Division, High Court); Karen Selby-King (Judicial Associate / Clerk, Family Division); Kelly Foxwell (Clerk, Family Division); Clive Higgleton (Clerk, Family Division); and officers of HMCTS's User Investigation Team (Customer Excellence Division). All are public officers. All were acting as such.

Wilful neglect. Each failure was preceded by written, timestamped, documented requests. In each case the duty was known, the request was received, and no action was taken. The Referral Package sets out 379 indexed records establishing this pattern over 26 months (February 2024 – March 2026).

Degree sufficient to amount to abuse of public trust. The conduct spans two years and includes: starvation of a disabled litigant during live proceedings; non-enforcement of a court order producing 71 documented unanswered requests; structural exclusion of a disabled woman from the final order process; failure to log, safeguard, or transmit criminal evidence submitted on multiple occasions; and formal misclassification of statutory equality duties as judicial discretion.

No reasonable excuse. The Complainant's incapacity was documented in real time at every stage. NHS clinical records, a consultant psychiatrist's letter to the court, a CLAAS autism diagnostic assessment, and contemporaneous court correspondence all establish that the subjects of this referral knew of the Complainant's disability and its operational consequences. None acted.

3. SUBJECTS OF THE REFERRAL

Subject	Role	Principal Acts / Omissions
MacDonald J	Family Division Judge — High Court	Failure to enforce MPS order (71 documented requests); refusal to give reasons for non-enforcement; mischaracterisation of Part 3A argument as request for legal representation; acceptance of unilateral draft order while Complainant was excluded; safety disclosures received and not acted upon; judgment of 18 April 2024 contains zero disability references across 111 paragraphs.
Karen Selby-King	Judicial Associate / Clerk, Family Division	Transmitted judicial responses mischaracterising Complainant's submissions; forwarded unilateral draft orders to judge without notifying Complainant of equal footing request; served final order and costs judgment simultaneously on Friday before Bank Holiday with no participation support.
Kelly Foxwell	Clerk, Family Division	Transmitted hearing on 24 May 2024 (NMO hearing) where Complainant joined video link and found no one present. Served sealed order without participation accommodation.
Clive Higgleton	Cover Clerk, Family Division	Refused MPS enforcement on procedural grounds despite fee paid; simultaneously imposed 14 May 4pm deadline while Complainant disclosed starvation, anaemia, and heart problems at 4:24am.
HMCTS User Investigation Team	Customer Excellence Division, HMCTS	Formal misclassification of Part 3A participation measures withdrawal as "judicial decision" on 14 November 2025 — closing every administrative complaint channel for a disabled user. This misclassification is factually wrong: no judicial act exists. It engaged HMCTS's s.149 Equality Act 2010 duty.

4. PRINCIPAL HEADS OF MISCONDUCT

4.1 Non-Enforcement of Maintenance Pending Suit — 71 Documented Requests

A Maintenance Pending Suit order was in force. Payments ceased in February 2024. Between 6 March and 24 May 2024, the Complainant made 71 documented written requests for enforcement. This figure is drawn from her own formal filing of 28 May 2024 (appeal application BV20D08761). Zero enforcement actions were taken.

On 7 May 2024, MacDonald J refused enforcement despite the D50K application fee having been paid, while simultaneously imposing a 14 May 4pm deadline. The Complainant had no food, no money, and disclosed heart problems in writing to the court at 4:24am on 8 May 2024.

On 3 May 2024 at 15:55 — one minute after the Complainant emailed the Lord Chancellor — opposing counsel unilaterally inserted paragraph 34 into the draft final order, extinguishing approximately £50,000 of MPS arrears. No notice. No application. No hearing. The court accepted and sealed it.

4.2 Structural Exclusion from Draft Order Process

Between 3 May and 24 May 2024, opposing counsel filed six versions of the draft final order unilaterally. The Complainant had no legal representation, no MPS income, no food, and no accommodation. She was in hospital with £120 on 14 May 2024 when five material amendments were filed without her input. The court accepted all of them. Opposing counsel confirmed in writing the following day that her participation in the draft order process was "minimal" and that it was "the judge's decision."

4.3 Failure to Implement Part 3A Participation Measures Post-Trial

Participation measures were ordered under FPR Part 3A and PD3AA during the trial (19–28 February 2024). Those measures ceased in practice on 28 February 2024. There is no identifiable judicial act, no order, no hearing, and no reasons for their cessation. No public officer has ever identified the judicial act authorising their withdrawal — because none exists.

59 records in the post-trial dataset (March–June 2024) are tagged PART3A. 172 records across all proceedings are tagged PARTICIPATION-DENIED. HMCTS formally classified the cessation as a "judicial decision" on 14 November 2025. That classification is factually wrong and constitutes a further administrative failure engaging the wilful neglect threshold.

4.4 Safety Disclosures Ignored

Three physical safety incidents — two in 2023 (police-reported) and one on 24 March 2024 involving the Complainant's 16-year-old daughter in Kensington — were reported directly to MacDonald J on 9 April 2024 while judgment was reserved. Judgment was delivered on 18 April 2024 with no reference to any safety disclosure. The judge's documented response to the 9 April email was: "hard to follow." No safeguarding referral was made.

4.5 Failure to Safeguard and Transmit Criminal Evidence — Imerman Devices

Two devices (MacBook Pro and Ubuntu laptop) were placed under court custody pursuant to HHJ Cope's Imerman directions of 7 April 2021. No chain of custody record was created. No forensic review was conducted. No administrative decision on handling was made. The devices have been held for four years without any order for their examination or return. They contain evidence of the criminal matters set out in Section 5 below. Criminal evidence referrals were submitted on 8 February 2024, 11 April 2024, and 12 May 2025. None were logged. None were transmitted. None were acknowledged by any court official or HMCTS administrator.

4.6 Timing of Final Order — Bank Holiday Friday

The final order and costs judgment were transmitted simultaneously at 11:28 on Friday 24 May 2024 — the Friday before the three-day Bank Holiday weekend. The Complainant had no legal representation, no food, and no accommodation. Any urgent response was structurally impossible for four days. The NMO hearing listed for the same afternoon resulted in the Complainant joining a video link and finding no one present.

5. UNDETERMINED CRIMINAL MATTERS

The following matters are not administrative complaints. They are allegations of criminal conduct — some by the opposing party, some arising from the failure of the public officers in Section 3 to act on the evidence submitted to them. None has been determined by any court, tribunal, or regulatory body.

Matter	Status	Why Not Determined
Perjury — Oxus Acquisition Corp. Karim Zahmoul stated under oath at the final hearing (19 February 2024) that Oxus Acquisition Corp. had no value at the time of the SPAC merger. The merger completed 8 February 2024 — 11 days earlier. The Complainant submitted a D11 application (7 March 2024). It was not sealed, not listed, and not addressed in the judgment.	UNDETERMINED — no judicial finding made	Campbell KC wrote to the judge at 08:15 on 6 March 2024 asking him not to read the Complainant's submission. The D11 was not sealed. The judgment contains no reference to Oxus.

Matter	Status	Why Not Determined
Money Laundering — Prostitution Proceeds Evidence on the Imerman devices and in the Pinocchio documents (transmitted by H via Signal, 6 May 2021 — confidentiality lost) indicates laundering of prostitution proceeds through UK and offshore accounts.	UNDETERMINED — devices unexamined for 4+ years	Submitted 8 February 2024, 11 April 2024, 12 May 2025. Not logged. Not transmitted. Not acknowledged.
Money Laundering — Kleptocracy / Sanctions Evasion Kenes Rakishev, Kazakh oligarch. Documented connection to H and to assets in the proceedings. Subject of SEC investigation and IRS Criminal Investigation (Special Agent Robert McGarry). Molina BTC cluster: 1AWKgMEwDjHxL3WcaoijvmnH5LXkTA3zw	UNDETERMINED — not referred despite submissions	Raised with MacDonald J, Lord Chancellor, Secretary of State for Justice, and NCA. Not logged by any court official.
Tax Fraud — False Statements (US nexus) Expert report by Tim Townsend (forensic accountant) placed before the court. Portuguese tax return re-filed post-trial by H's accountant — admitting overseas accounts omitted. SEC whistleblower submission TCR 17284-760-060-567 (9 October 2024).	UNDETERMINED — expert report not acted upon	Expert report before court before hearing. Portuguese re-filing disclosed by AFP Bloom 5 March 2024. No court referral made.
Safety Threats — Rakishev Associates Three physical safety incidents reported to MacDonald J on 9 April 2024. Surveillance of 16-year-old daughter on 24 March 2024 confirmed. Response: "hard to follow."	UNDETERMINED — reported to judge, no action	Safety report received; judgment silent. No safeguarding referral. No police referral by court.

6. EVIDENTIAL FOUNDATION

Component	Description
Master Index v7	379 indexed contemporaneous records. February 2024 – March 2026. Named actors, timestamps, misconduct tags across six categories. GitHub: https://github.com/nadiazahmoul/JR-Zahmoul-v-SSJ-HMCTS-Archive
20 Most Compelling Records	Set out in the companion document (Zahmoul_CompellingMisconduct_Top20). Records 1–15 are the core set; Records 16–20 add the LIP transition, PTSD disclosure, binary question refusal, and pre-deadline escalation day.
Full Participation Annex	379-entry chronological record of every document February–June 2024. Three unilateral order dates flagged (3 May, 14 May, 24 May 2024). Landscape format.
Post-Trial Participation Failures	Narrative document with corrected metrics: 71 MPS enforcement requests; 59 Part 3A-tagged records post-trial; 172 PARTICIPATION-DENIED records across all proceedings.
Imerman Annex	Finalised. Updated 11 March 2026 to reflect JR refusal (Parts 2.8 and 6.3). 392 paragraphs across nine parts.
Oxus / Perjury Annex	Completed. JR reference updates deferred pending Chancery relisting outcome.
Medical Evidence — 13 records	NHS records, treating clinician records, US emergency records. Earliest: Cottonwood Tucson 2 April 2013. Most recent: St John's Medical Center, Jackson WY, 10 December 2025.
Legal Framework Compliance Schedule	Maps every applicable rule governing vulnerable parties against attendance notes, transcript, and compliance status. Judgment (111 paragraphs) contains zero disability references.
All Routes Exhausted Documentation	HMCTS complaints Stages 1–4 (final response 14 November 2025 — misclassification). PAP correspondence to MoJ (unanswered). Ministerial escalation. PHSO complaint November

Component	Description
	2025 (pending). 40+ parliamentary notifications. JR AC-2025-LON-004293 (refused TWM 11 March 2026). CPR 3.1(7) revocation filed 12 March 2026.
Chancery Proceedings (BL-2024-001217)	Default judgment £1,008,848.42. Hearing vacated 12 March 2026 (costs reserved). Direct causal link to MPS non-enforcement and funding collapse. Detach litigation funder — loan obtained during Family proceedings in which participation was systematically denied.

7. MISCONDUCT TAGS — QUANTIFIED ACROSS 379 RECORDS

Tag	Legal Element (AG's Reference No 3 of 2003)	Count (379 records)
WILFUL-NEGLECT	Known duty; failure to perform; no explanation given	133
RECKLESS-INDIFF	Incapacity evidence received; no accommodation taken	95
PARTICIPATION-DENIED	Knew Complainant could not participate; proceeded anyway	172
INSTITUTIONAL-DEFLECT	Formal matter raised; routed away without engagement	180
ABUSE-OF-PROCESS	Procedure used inconsistently with its purpose	58
REASONS-REFUSED	Decision made; reasons required by law; none given	15

8. ALL ROUTES EXHAUSTED — CHRONOLOGY

Date / Period	Route and Outcome
Feb–May 2024	71 documented MPS enforcement requests. Zero enforcement actions. 120 days without income.
Apr 2024	Three safety incidents reported to MacDonald J while judgment reserved. No action. Not referenced in judgment.
May–Jun 2024	Multiple stay applications. No mechanism provided. No form. Proceedings continued.
Oct–Nov 2025	Four-stage HMCTS formal complaint. Final response 14 November 2025: misclassification as "judicial decision." All complaint channels closed.
Oct–Nov 2025	Pre-Action Protocol letters to Ministry of Justice. Unanswered.
Nov 2025	Ministerial escalation to Secretary of State for Justice and Health. No substantive response.
Nov 2025	Minister Stephen Kinnock MP: confirmed enforcement gap under Autism Act 2009. No remedy.
Nov 2025	PHSO complaint filed. No determination as of 15 March 2026.
Nov 2025	Letters to 40+ parliamentarians including House of Lords Autism Act 2009 Committee. No remedy.
Dec 2025	Judicial Review N461 filed — AC-2025-LON-004293. Permission stage.
4 Mar 2026	N463 urgent application filed. Sealed 6 March 2026.
11 Mar 2026	JR permission refused — TWM — Collins Rice J. Costs £3,125.50.
12 Mar 2026	CPR 3.1(7) revocation application filed. Ground: fundamental error in refusal order — addresses wrong claim.
12 Mar 2026	Chancery hearing BL-2024-001217 vacated. Costs reserved. Relist as in-person required.
13 Mar 2026	Parliamentary written evidence submitted — Justice Committee.
16 Mar 2026	THIS REFERRAL FILED.

9. CURRENT STATUS AND ACTIVE HARM

The Complainant is a single parent with two dependent children. She is autistic (NHS diagnosis June 2025) and has PTSD (treating since 2011). She has been hospitalised during these proceedings. US emergency departments attended November and December 2025. Currently under care of South Kensington and Chelsea Crisis and Home Treatment Team. Her 85-year-old father was her sole financial support throughout March–May 2024. The CLAAS clinical warning has been before every court and institution. It has not been acted upon.

The Chancery hearing before Master Pester (BL-2024-001217) was vacated on 12 March 2026 and must be relisted as an in-person hearing. Costs are reserved. The claim (£1,008,848.42 default judgment) arises directly from litigation funding obtained during the Family proceedings. It is a downstream consequence of the MPS non-enforcement and funding collapse documented in this referral.

The CPR 3.1(7) application to revoke the JR refusal order is before the Administrative Court. This referral is not conditional on any outcome of that application.

The Detach proceedings (BL-2024-001217) involve a running account agreement under which the lender has confirmed that interest continues to accrue and that no payment offer will freeze its accumulation. The financial harm is ongoing.

10. WHAT THIS REFERRAL ASKS OF LAW ENFORCEMENT

- (a) Open a criminal investigation into the conduct of the named public officers under the misconduct in public office threshold in AG's Reference (No 3 of 2003).
- (b) Secure the Imerman devices (MacBook Pro and Ubuntu laptop) currently held in court custody before further deterioration, loss, or destruction. No chain of custody record exists. No court order governs their handling.
- (c) Consider the undetermined criminal matters in Section 5 — in particular the Oxus perjury allegation, the money laundering evidence, and the Rakishev network — in the context of this referral.
- (d) Liaise with the IRS Criminal Investigation (Special Agent Robert McGarry, robert.mcgarry@ci.irs.gov, 917-620-8587) and the SEC (TCR 17284-760-060-567) regarding the US-nexus matters.
- (e) Note that the Pinocchio documents were transmitted by Karim Zahmoul to the Complainant via Signal on 6 May 2021. Confidentiality was lost at the point of transmission. They are available to law enforcement without a court order.
- (f) Treat the Complainant's autism and PTSD as operational context. The CLAAS clinical warning applies to all contact: she may communicate clearly while in clinical crisis. Written communication is strongly preferred. Response by email to nadia@rosekross.com.

Signed:

Nadia Zahmoul

Complainant — Litigant in Person

nadia@rosekross.com | +44 (0)7913 328 615

35 Queens Gate Gardens, Flat 7, London SW7 5RR

Dated: 16 March 2026

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CRIMINAL REFERRAL

Recusal Application Ignored: Exploitation of Documented Vulnerability and Acute Harm Caused

The Honourable Mr Justice MacDonald — Family Division

Case Reference:	BV20D01752 / CA-2024-001342
Date:	24 March 2026
Referring Party:	Nadia Zahmoul (Litigant in Person)
Addressed to:	Metropolitan Police Service — Serious and Organised Crime Command Crown Prosecution Service — Special Crime Division (for information) National Crime Agency — Economic Crime Command
Subject:	Formal recusal application filed from 10 February 2025. Filed almost daily. Escalated to Parliament, Lord Chancellor, Master of the Rolls, Attorney General. Never acknowledged. Never determined. Same judge proceeded to hear the case on 8 May 2025. Acute psychiatric harm followed, documented by independent NHS clinicians.
Judge:	The Honourable Mr Justice MacDonald — Leading High Court judge, Family Division, England and Wales. President's Nominee for Children Cases.

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Not for distribution without the written consent of the referring party. This referral may be considered as a self-contained referral independently of the criminal referral package filed on 20 March 2026.

PART 1 — THE CORE FACTS

The following facts are established by primary documents. They are presented in the order in which they occurred.

1.1 A Formal Application Was Filed

From 10 February 2025, the applicant filed a formal application on Form N244 seeking the recusal of MacDonald J from further conduct of proceedings in BV20D01752. The application was filed with the Court of Appeal. It was refiled on 31 March 2025, 9 April 2025, 10 April 2025, 11 April 2025, and thereafter almost every day until the hearing of 8 May 2025.

The grounds of the application were:

- Judicial bias
- Disability discrimination — a costs order had been made attributing court disruptions to the applicant's autism and PTSD symptoms
- Findings about the applicant's presentation in the witness box that were unsupported by the oral evidence
- Breakdown of trust: the applicant stated in terms that she did not feel safe with the judge

1.2 The Applicant's Words — Filed with the Court

On 6 May 2025 at 17:49 — two days before the hearing — the applicant filed the following with the Court of Appeal (CMSB and Urgent Work):

I do not feel safe with the High Court judge for reasons which are clear from reading my applications, affidavits, and statements since March/April 2024. I do not want my case to be handled by him anymore because I feel violated, discriminated against, and abused. It makes me feel unsafe, disoriented, and very distressed.

A judge who makes a cost order against my autism and PTSD is not a good fit for this case.

The High Court made findings about my presentation in the witness box which are defamatory, injurious, and discriminatory. These findings are false and are not supported by the oral evidence.

Source: Email, Nadia Zahmoul to Civil Appeals CMSB and Urgent Work, 6 May 2025 17:49. Subject: CA-2024-001342-A — FOR YOUR URGENT ATTENTION PLEASE. The Court of Appeal received this email. The hearing on 8 May 2025 proceeded.

At 3:46am on 8 May 2025 — the morning of the hearing — the applicant filed a further email stating:

I am going through a severe mental health crisis as a result of these proceedings and I fear that the judge's unfounded attacks on my character, and his contempt for me are very harmful and have pushed me in a downward spiral.

Source: Email, Nadia Zahmoul to Court of Appeal (Mr Maher), 8 May 2025 03:46.

1.3 A Consultant Psychiatrist's Letter Was Before the Court

At 12:41am on 8 May 2025, the applicant filed an adjournment application supported by a letter from her treating consultant psychiatrist, Dr Leigh Poyser MBBS MRCPsych, South Kensington and Chelsea Crisis Resolution and Home Treatment Team, CNWL NHS Foundation Trust. The letter was dated 26 March 2025. It made four clinical findings.

The judgment of 8 May 2025 quoted two of those findings. It omitted two. The table below sets out what was said and what was done with it.

Dr Poyser Letter — 26 March 2025 (what it says)	Judgment of 8 May 2025 (how it was treated)
Finding A: Mrs Zahmoul is currently under the care of myself and my team due to her experience of a mental health crisis. Significant levels of agitation and poor sleep, exacerbated by the stress of her current court case.	QUOTED at paragraph 21. Used to establish clinical evidence existed.
Finding D: We would like to inquire if there is an advocacy service or any other appropriate support that	QUOTED at paragraph 37. Used to conclude applicant was not unfit to attend — only that she required

could be made available to assist her in hearing and giving evidence at the hearing.	support. This passage is then used to support the finding that she waived her right to be present.
Finding B: Specifically, she reports great difficulty processing certain aspects of the proceedings, particularly regarding the evidence presented to her that she perceives as untrue.	NOT QUOTED. NOT ACKNOWLEDGED. NOT ADDRESSED ANYWHERE IN THE JUDGMENT.
Finding C: Nadia is due to meet with our psychologists soon in response to a query regarding whether she may exhibit symptoms of autism. This query is particularly pertinent as she has a first-degree relative with the same diagnosis. It is possible that these factors may influence how she perceives and processes the information provided during the court proceedings.	NOT QUOTED. NOT ACKNOWLEDGED. NOT ADDRESSED ANYWHERE IN THE JUDGMENT.

Findings B and C — the findings that described the applicant's specific clinical presentation, its possible relationship to autism, and its effect on her ability to process proceedings — are absent from the judgment. Finding D — the request for advocacy support — was quoted and used to support the conclusion that the applicant was not unfit to attend, only that she needed support, and therefore that she had waived her right to be present.

1.4 The Application Was Not Acknowledged and Was Not Determined

The recusal application was filed from 10 February 2025. It was filed almost daily. It was escalated to Parliament, the Lord Chancellor, the Master of the Rolls, and the Attorney General. The complete record of filings and responses is set out in Part 3 below.

The first and only institutional response was received on 10 June 2025 — 33 days after the first urgent email, and 33 days after the hearing had already taken place. Peter Cobourn, Administrative Officer, Court of Appeal, conveying the direction of Master Meacher, wrote:

Your application notice dated 13 May 2025 seeking the recusal of MacDonald J should be made in the High Court, not the Court of Appeal.

This was a redirection, not a determination. No court said yes. No court said no. No court gave reasons. The judge against whom the application was directed continued to sit and delivered judgment on 8 May 2025.

1.5 The Hearing of 8 May 2025 Proceeded

The hearing of 8 May 2025 proceeded before MacDonald J. The applicant was absent. The adjournment application filed at 12:41am was refused. The set-aside application was dismissed as totally without merit. All applications were dismissed. An indemnity costs order was made. The judgment characterised the applicant's non-attendance as 'deliberately obstructive behaviour, designed to hinder the implementation of the final order' (paragraph 39). Her written submissions were described as 'verbose and rambling' (paragraph 43). The indemnity costs order was based on 'persistent poor litigation conduct' (paragraph 68).

The judgment contains no reference to the applicant's disability. It contains no reference to FPR Part 3A. It contains no reference to the recusal application. It contains no explanation of why the hearing proceeded before the same judge whose recusal had been formally sought.

PART 2 — THE LEGAL FRAMEWORK

2.1 The Duty to Determine a Recusal Application

The law is clear. When a recusal application is made, it must be determined. It cannot be ignored.

The leading authority is *Porter v Magill* [2002] 2 AC 357, which establishes the test for apparent bias: if a fair-minded and informed observer, having considered the facts, would conclude that there was a real possibility that the judge was biased, the judge must recuse himself. The word 'must' is not permissive. It is a legal obligation.

The Court of Appeal confirmed in *Morrison v AWG Group Ltd* [2006] EWCA Civ 6 that the decision whether or not to recuse is not a discretionary case management decision. The prejudice to the administration of justice and the delays that arise from a successful recusal application are not relevant factors. If the test is met, the judge must not hear the case, irrespective of inconvenience.

The duty to give reasons applies in both directions. Judiciary Guidance No. 15 (Apparent Bias) states: 'If you do recuse yourself, give reasons. If you do not recuse yourself, give reasons.' Silence is not a permissible response to a recusal application.

2.2 The Procedure Required by Law

The procedure for recusal applications in family proceedings was set out by Ward LJ in *El-Farargy v El-Farargy* [2007] EWCA Civ 1149. It requires:

- First: an informal approach to the judge by letter making the complaint and inviting recusal.
- Second: the judge may deny the complaint but pass the case to a colleague.
- Third: if the judge does not feel able to determine his own recusal, another judge should take the decision — 'it is better that justice be done independently by another rather than require the judge to sit in judgment of his own behaviour.'

The applicant made the informal approach. She made it repeatedly from 10 February 2025. The judge neither determined the application, nor referred it to a colleague, nor gave any response whatsoever. The hearing of 8 May 2025 proceeded before the same judge.

2.3 The Duty of Care to a Vulnerable Litigant

FPR Part 3A places a duty on the court to consider the vulnerability of parties and to ensure that participation measures are in place throughout proceedings — not only during the hearing itself, but as soon as possible after the court becomes aware of vulnerability, and continuing until the resolution of proceedings (FPR r.3A.9(1)).

The applicant's vulnerabilities — autism and PTSD — were clinically documented, personally acknowledged by MacDonald J during the final hearing, and the subject of a consultant psychiatrist's letter filed with the court. The participation measures previously granted under FPR Part 3A had been withdrawn after the final hearing without a judicial order, hearing, or reasons.

A litigant in person with documented autism and PTSD, no legal representation, no income, and a live recusal application stating she did not feel safe — is a vulnerable litigant. The court's duty under FPR Part 3A, the

Equality Act 2010, and the overriding objective of the Family Procedure Rules (dealing with cases justly, including considering the parties' vulnerability) required that her application be addressed before the hearing proceeded.

2.4 Administrative Failure and Judicial Failure — The Distinction

The failure to process and determine the recusal application has two distinct components.

The first is administrative. No administrative mechanism within the court system was engaged to place the application before a judge for determination. No judge was assigned. The application was not sealed, listed, or scheduled. This is a function of the court office and HMCTS — not a judicial act. It is an administrative void.

The second is judicial. MacDonald J sat on 8 May 2025 with a live, undetermined recusal application on the record. He heard the case. He delivered judgment. He made no reference to the recusal application in the judgment. The choice to proceed without determining or referring the recusal application was his.

The combination of administrative failure and judicial failure meant that the protection mechanism the applicant had invoked — the recusal application — was rendered entirely without effect. The harm that followed was the direct consequence.

PART 3 — THE EXPLOITATION OF DOCUMENTED VULNERABILITY

3.1 What the Judge Knew

The applicant's vulnerabilities were not general or inferrable. They were specific, documented, and personally acknowledged by MacDonald J in the course of the proceedings.

During the final hearing (19–28 February 2024), MacDonald J:

- Ordered participation measures for the applicant under FPR Part 3A — frequent breaks, restricted questioning, assistance in the witness box, screened seating — because of her autism and PTSD
- Asked the respondent directly in cross-examination: 'Did you say Nadia had PTSD?' (Attendance Notes, line 2897)
- Received Professor Gerald Libby's psychiatric letter (12 July 2022) confirming PTSD treatment
- Told the applicant from the bench, while she was in the witness box: 'I should have made clearer, I have had the opportunity to read everything in the bundle. I have been involved for a long time, I know a lot about it, you do not need to give me the background. I know.' (Attendance Notes, page 42, lines 1986–1988)

The bundle he confirmed he had read included the applicant's Section 25 statement, which contained her full account of domestic abuse, coercive control, PTSD, and the circumstances of her marriage.

On 26 March 2025, Dr Poyser's letter placed before the court confirmed that the applicant was in a mental health crisis caused by the proceedings. Finding B identified a specific clinical feature — difficulty processing evidence perceived as untrue — directly relevant to how she would experience an adverse judgment. Finding C identified a pending autism assessment that might influence how she processes information in proceedings.

On 6 May 2025 and 8 May 2025, the applicant filed written statements to the Court of Appeal stating she was in a severe mental health crisis and did not feel safe. These were before the court on the morning of the hearing.

3.2 What the Recusal Application Was Asking For

The recusal application was not a tactical manoeuvre. It was a protection mechanism. The applicant was a person with autism and PTSD, without legal representation, without income, who had been subjected to a costs judgment attributing court disruptions to her disability, and who had received a judgment containing findings she described as defamatory and unsupported by the evidence.

She knew — and stated — that being subjected to a further hearing before the same judge, and receiving a further adverse judgment from him, would cause her acute harm. She asked the court to protect her by assigning a different judge. That is what the recusal application was for.

The application was not determined. The hearing proceeded. The further adverse judgment was delivered. The harm she had predicted and sought protection from occurred exactly as she had described.

3.3 Why the Same Acts Would Not Have Caused the Same Harm to a Different Person

A person without autism and PTSD, receiving an adverse judgment in financial remedy proceedings, would experience disappointment, anger, and distress. They would not experience 48 hours of shock and mutism, self-inflicted injuries, blood found by their daughter, police called, ambulance, admission to A&E, and clinical administration of droperidol 10mg intramuscularly.

The acute harm that followed the judgment of 8 May 2025 was the product of the specific clinical vulnerabilities the applicant had — vulnerabilities that MacDonald J had personally acknowledged, ordered participation measures for, and received a clinical letter about. Those vulnerabilities made her specifically susceptible to exactly the kind of harm that followed.

Dr Poyser's Finding B — that the applicant had great difficulty processing evidence she perceived as untrue — directly predicted the clinical response to an adverse judgment delivered in proceedings the applicant regarded as fundamentally unjust. Finding B was not quoted in the judgment. Finding C — that autism might influence how she processes information in proceedings — was not quoted either.

The judge had the clinical letter. He had the recusal application. He had the applicant's written statement that she was in a severe mental health crisis and did not feel safe. He proceeded. The harm was predictable. The harm was avoidable.

3.4 The Applicant's Direct Account — 17–20 June 2025

The following is the applicant's direct account of the 48-hour period following the judgment. It is available as a signed statement to the police on request.

When I received the judgment I went into shock. I could not speak. I was mute for approximately 48 hours. I was covered in bruises — self-inflicted. There was blood. My daughter found me and called an ambulance and the police. I felt trapped. I felt powerless. I collapsed. The judgment was so wrong — so completely at odds with what had actually happened — that I could not process it. I could not function. The CLAAS team knew how severe the impact was. They were very concerned.

Direct testimony — Nadia Zahmoul, 24 March 2026. Available as a signed statement on request.

3.5 The Independent Clinical Record — Chelsea and Westminster Hospital

The following facts are drawn from the verified Emergency Department Departure Summary, Chelsea and Westminster Hospital NHS Foundation Trust, MRN 80718960. The document was produced by clinicians with no connection to the Family Division proceedings.

Clinical Fact	Detail from Clinical Record	Source
Date and time	20 June 2025 at 06:09	ED Depart Summary (Verified)
Source of referral	Ambulance (BIBA — brought in by ambulance)	Initial Assessment
Clinical presentation on arrival	Unusual behaviour, erratic. Disorganised speech, movement on arrival. Attempted to abscond.	Initial Assessment
Preoccupation documented by LAS	<i>'She also appeared to be fixed on the courts and kept asking LAS if they were sent by them.'</i>	Brief Summary
Collateral history from daughter	<i>'Her daughter reported a decline in Nadia's behaviour over the past 48 hours.'</i>	Brief Summary
Autism service — prior day	<i>'Currently open to the autism service... Concerns were raised about Nadia's mental state by the autism service on 19/06/25 and she was referred to CNWL SPA for triage.'</i>	Impression
Medication administered	Droperidol 10mg IM (06:23); Lorazepam 2mg oral (12:11); Paracetamol 1g oral	Medications Administered
Alcohol and substances	Ethanol: less than 100mg/L. Not detected.	Blood Sciences
Clinical impression	Significant deterioration and episode of agitation. Referred to SK&C HTT for further assessment and containment.	Impression

PART 4 — THE COMPLETE RECORD OF THE RECUSAL APPLICATION

The following table sets out every documented filing, escalation, and institutional response in chronological order. Every entry derives from a primary document. The application was filed from 10 February 2025. It was received by the Court of Appeal. It was never determined by any court at any level. The judge against whom it was directed continued to sit throughout.

Key: Red rows = the hearing that proceeded and the acute psychiatric crisis. Amber row = the only institutional response received.

Date	Time	Act	Institution	Response
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10 Feb 2025	—	First N244 recusal application filed. Grounds: judicial bias; disability discrimination; findings about witness box presentation unsupported by oral evidence.	Court of Appeal	None
31 Mar 2025	—	N244 refiled.	Court of Appeal	None
9 Apr 2025	—	N244 refiled.	Court of Appeal	None
10 Apr 2025	—	N244 refiled.	Court of Appeal	None
11 Apr 2025	—	N244 refiled.	Court of Appeal	None
Apr–May 2025	—	Applications filed almost daily. Confirmed in email of 6 May 2025: 'I submitted the attached application on Form N244 on 10 February 2025, 31 March 2025, 9 April 2025, 10 April 2025, 11 April 2025 and thereafter almost on every day.'	Court of Appeal	None
6 May 2025	17:49	Urgent email to Court of Appeal (CMSB and Urgent Work). 'I do not feel safe with the High Court judge... I feel violated, discriminated against, and abused... A judge who makes a cost order against my autism and PTSD is not a good fit for this case.' Hearing listed for 8 May 2025. Request to seal application and stay hearing.	Court of Appeal	None before hearing
7 May 2025	09:37	Chase to Mr Singh. 'The application must be sealed urgently, and the High Court should be notified in order to stay the hearing listed tomorrow.'	Court of Appeal	None before hearing
7 May 2025	11:03	Further chase. 'I cannot be with the High Court judge anymore due to discrimination issues and procedural irregularities.'	Court of Appeal	None before hearing
7 May 2025	14:49	Reply to Mr Maher. Cost order made against autism and PTSD symptoms. Findings about witness box presentation false and not supported by oral evidence.	Court of Appeal	None before hearing
8 May 2025	03:46	Email to Mr Maher. 'I am going through a severe mental health crisis as a result of these proceedings.' Requests appointment of different judge.	Court of Appeal	None before hearing
8 May 2025	12:41am	Adjournment application filed. Supported by Dr Poyser letter (26 March 2025).	Family Division	Refused at hearing

8 May 2025	—	HEARING PROCEEDS. Applicant absent. Adjournment refused. Set-aside dismissed. All applications dismissed totally without merit. Indemnity costs ordered. No reference to disability or Part 3A in judgment. Recusal application undetermined.	MacDonald J, Family Division	N/A
12–13 May 2025	—	N244 bundle filed in four parts. Formal recusal application (signed) with full grounds and transcript of oral evidence as exhibit (99 pages). Escalation to Parliament, Lord Chancellor, PM, Master of the Rolls, Attorney General, Anti-Corruption Champion, Human Rights Watch, 100+ MPs and Lords. References DH v RH (No 3) [2024] EWFC 79 para 64 and DH v RH (No 4) [2024] EWFC 114 para 9.	Multiple institutions	No substantive response
29 May– 11 Jun 2025	Daily	Further recusal applications filed almost daily: 29 May, 30 May, 2 Jun, 4 Jun (multiple), 5 Jun (multiple), 6 Jun (multiple), 9 Jun (multiple), 10 Jun, 11 Jun (multiple). Recipients include Family High Court registry, Court of Appeal Urgent Work, Attorney General.	Multiple institutions	No determination
10 Jun 2025	15:27	ONLY INSTITUTIONAL RESPONSE RECEIVED. Peter Cobourn (Administrative Officer, Court of Appeal), conveying direction of Master Meacher: 'Your application notice dated 13 May 2025 seeking the recusal of MacDonald J should be made in the High Court, not the Court of Appeal.' Received 33 days after first urgent email.	Court of Appeal	Redirection only. No determination.
11 Jun 2025	Multiple	Immediate response to Cobourn redirection. At least seven separate emails to Family High Court registry requesting acknowledgment of recusal application filed 13 May 2025.	High Court Family Division	No acknowledgment
17 Jun 2025	10:51	CLAAS (Central London Adult Autism Service) documents distress and court failures in writing. 'You shared with us that you have been struggling to navigate the case recently as you feel that your needs have been ignored by the court.' Three post-diagnostic sessions scheduled from 19 June.	NHS (CLAAS/CLCH)	Clinical referral only
19 Jun 2025	—	Autism service raises emergency concerns about applicant mental state. Referred to CNWL SPA for triage. Scheduled session does not take place.	NHS	Clinical escalation

20 Jun 2025	06:09	APPLICANT ADMITTED TO A&E BY AMBULANCE. Droperidol 10mg IM administered. Clinical record: 'fixed on the courts.' Daughter reports 48-hour decline. No alcohol or substances detected. Referred to SK&C HTT for further assessment and containment.	Chelsea and Westminster Hospital NHS	Acute psychiatric treatment
2 Jul 2025	—	New N244 filed with autism diagnosis report (Dr Catherine Cheung, CLAAS, 1 July 2025). 'Autism is at the heart of this matter... Without autism participation measures I cannot have a fair trial.'	Court of Appeal	None
3 Jul 2025	—	EX105 transcript request filed. States oral evidence demonstrates disability discrimination and judicial bias.	Court of Appeal	None
30 Jul 2025	—	Further recusal applications to 100+ recipients. Last documented filing in this sequence.	Multiple institutions	No determination by any court

THE POSITION IN ONE SENTENCE

The recusal application was filed from 10 February 2025, almost daily, and escalated to Parliament, the Lord Chancellor, the Master of the Rolls, and the Attorney General. No court acknowledged it. No court determined it. No court said yes. No court said no. The only response received — 33 days after the first urgent email, and after the hearing had already proceeded — was a redirection. The judge whose recusal was sought delivered judgment in the applicant's absence, dismissed all her applications as totally without merit, and made an indemnity costs order. The A&E admission followed 43 days later.

PART 5 — QUESTIONS FOR INVESTIGATING OFFICERS

This referral does not ask investigating officers to determine the family law merits. It asks the following binary questions, each of which can be answered from the primary documents.

Question	What Officers Are Asked to Do
Was the recusal application filed from 10 February 2025 ever acknowledged by any court?	Obtain court records for BV20D01752 and CA-2024-001342 for the period February–June 2025. Confirm whether any order, direction, or written response was issued in response to the recusal application prior to the hearing of 8 May 2025.
Was any judicial determination made — whether to grant or refuse the recusal application — at any point?	Obtain the court record. The only documented institutional response is the Cobourn email of 10 June 2025 (DOC-10), received after the hearing. Confirm whether any determination exists beyond that redirection.
Did MacDonald J have the recusal application, the Dr Poyser letter, and the applicant's written statements	The judgment of 8 May 2025 (DOC-04) references Dr Poyser's letter at paragraphs 21 and 37. This confirms

before him when the hearing of 8 May 2025 proceeded?	he had it. The adjournment application filed at 12:41am is referenced at the opening of the judgment. Confirm what documents were before the court at the hearing.
Did the judgment of 8 May 2025 address Findings B and C of Dr Poyser's letter?	Read the judgment (DOC-04) alongside Dr Poyser's letter (DOC-01). Confirm whether Findings B and C appear anywhere in the 68-paragraph judgment.
Was the applicant's psychiatric admission on 20 June 2025 causally connected to the judgment of 8 May 2025?	The A&E notes (DOC-11) record preoccupation with the courts. The CLAAS email of 17 June 2025 (DOC-03) documents distress caused by court failures. The applicant's daughter reported a 48-hour decline. Request statements from NHS clinicians. Request the CLAAS records. The applicant's signed statement (DOC-12) is available on request.

PART 6 — DOCUMENTS AVAILABLE FOR PRODUCTION ON REQUEST

Ref	Document	Date	Description
DOC-01	Dr Leigh Poyser MBBS MRCPsych — Letter to Court	26 Mar 2025	Consultant Psychiatrist, South K&C CRHTT, CNWL NHS Foundation Trust. Four findings: (A) mental health crisis caused by proceedings; (B) difficulty processing evidence perceived as untrue; (C) autism assessment pending, may influence participation; (D) advocacy support requested. Findings B and C were omitted from the judgment of 8 May 2025.
DOC-02	Gloucestershire CRHTT Assessment	4 Mar 2025	James Pullen, Trainee Advanced Clinical Practitioner, Gloucestershire Health and Care NHS. Crisis assessment. PTSD confirmed. Acute stress reaction. Prior A&E admission with haloperidol administered.
DOC-03	CLAAS — Summary of telephone discussion	17 Jun 2025	Sophia Iacovou, Assistant Psychologist / Dr Catherine Cheung, Consultant Psychologist, CLCH NHS Trust. Distress documented. Court needs ignored. Post-diagnostic sessions scheduled from 19 June. Letter of support with reasonable adjustments committed. CC: GP.
DOC-04	MacDonald J — Judgment (approved transcript)	8 May 2025	17 pages, 68 paragraphs. Adjournment refused. Set-aside dismissed. All applications dismissed TWM. Indemnity costs. Paragraphs 21 and 37 quote Dr Poyser selectively. Findings B and C absent. Paragraph 39: 'deliberately obstructive behaviour.' Paragraph 43: 'verbose and rambling.' Paragraph 68: indemnity costs.

DOC-05	MacDonald J — Sealed Order	8 May 2025 (sealed 5 Jun 2025)	All applications dismissed TWM. Court signs transfer documents under s.39 Senior Courts Act 1981. Indemnity costs ordered.
DOC-06	Email: 6 May 2025 — FOR YOUR URGENT ATTENTION PLEASE	6 May 2025 17:49	Filed with Court of Appeal two days before hearing. 'I do not feel safe with the High Court judge.' Cost order made against autism and PTSD symptoms. Findings about witness box presentation unsupported by oral evidence. Received by Court of Appeal. No response before hearing.
DOC-07	Email chain: 7–8 May 2025	7–8 May 2025	Three further emails: 09:37 chase to Mr Singh; 11:03 second chase; 03:46am email to Mr Maher stating severe mental health crisis as result of proceedings. All sent before hearing. None received a response before hearing.
DOC-08	N244 Recusal Application (signed) and supporting affidavit	13 May 2025	Formal recusal application. Grounds: judicial bias; disability discrimination; defamatory findings; cost order against PTSD and autism symptoms. References DH v RH (No 3) [2024] EWFC 79 para 64 and DH v RH (No 4) [2024] EWFC 114 para 9.
DOC-09	Index A — Bundle filed with Court of Appeal	12–13 May 2025	Index of bundle filed with the Court of Appeal in four parts on 12 May 2025 and formal recusal application on 13 May 2025. Confirms transcript of oral evidence (99 pages) was filed as an exhibit with the recusal application.
DOC-10	Peter Cobourn — Court of Appeal redirection	10 Jun 2025	Email from Peter Cobourn (Administrative Officer), conveying direction of Master Meacher: 'Your application notice dated 13 May 2025 seeking the recusal of MacDonald J should be made in the High Court, not the Court of Appeal.' Received 33 days after first urgent email. No determination made.
DOC-11	Chelsea and Westminster Hospital — ED Depart Summary (Verified)	20 Jun 2025	MRN 80718960. Admission by ambulance 06:09. Droperidol 10mg IM. Preoccupation with courts documented. Autism service concerns raised 19 June. 48-hour decline reported by daughter. No substances detected. Referred to SK&C HTT.
DOC-12	Direct testimony of the applicant	24 Mar 2026	Account of 48-hour crisis: shock, mutism, self-inflicted injuries, blood found by daughter, police called, ambulance called, admitted to A&E. Available as signed statement on request.
DOC-13	Recusal correspondence (full)	May–Jul 2025	Complete email chain from 6 May 2025 to 30 July 2025. Available on request.

DOC-14	CPS response to referral transmission	24 Mar 2026	Email from Zoë Martin, Unit Head, Special Crime and Counter Terrorism Division, CPS, 102 Petty France, London SW1H 9EA. States CPS does not accept referrals from members of the public. Confirms referral was received by that division. Primary recipient remains MPS Serious and Organised Crime Command. CRN sought in person 24 March 2026.
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Submitted by: Nadia Zahmoul — Litigant in Person
Email: nadia@rosekross.com | Address withheld | Date: 24 March 2026

Veritas Numquam Perit

This referral is submitted as part of a criminal referral package addressed to: Metropolitan Police Service — Serious and Organised Crime Command; Crown Prosecution Service — Special Crime Division; National Crime Agency — Economic Crime Command. It may be considered as a self-contained referral independently of that package.

CRIMINAL REFERRAL — ANNEX D4

RECUSAL APPLICATION: SUPPRESSION, BIAS, AND CLINICAL HARM

BV20D01752 | CA-2024-001342 | 19 March 2026 | CONFIDENTIAL — FOR LAW ENFORCEMENT USE ONLY

WHAT THIS ANNEX ESTABLISHES

This annex establishes four propositions, each documented by contemporaneous evidence:

- MacDonald J made findings in the judgment and costs judgment that are demonstrably false, directly contradicted by the trial transcript, and constitute unlawful disability discrimination under EA 2010 s.15 and s.19.
- NZ formally sought recusal from 10 February 2025 onwards. The application was filed on multiple occasions and was never sealed, acknowledged, or placed before a judge. MacDonald J continued to exercise jurisdiction against her.
- The direct clinical consequence of MacDonald J's conduct is documented: NZ was admitted to the Crisis Resolution and Home Treatment Team at Chelsea and Westminster Hospital from 1 March 2025 and was under daily care. A Consultant Psychiatrist (Dr Poyser) provided a letter in support of her adjournment application on 8 May 2025.
- The final sealed order of 24 May 2024 contains two false statements of fact. Neither has ever been explained by any court or authority.

PART 1 — THE BIAS FINDINGS: WHAT THE JUDGMENT SAYS AND WHY IT IS WRONG

1.1 Paragraph 64 — The 'Obsession' Finding

The final judgment [2024] EWFC 79, paragraph 64, states:

"The wife's presentation in the witness box on the issue of alleged non-disclosure bordered on the concerning. Her belief that the husband has vast hidden assets is so powerfully held, and such was her urgent need to impress that belief on the court from the witness box, that at times everything she said was coloured by this belief."

This finding is wrong on the evidence and wrong in law for four documented reasons:

- CONTRADICTED BY TRANSCRIPT: The question of 'hidden assets' was put to NZ once during cross-examination. Her answer was: 'Not strictly true, what is important is freedom from everything and justice.' One question. One answer. The judgment converts a single cross-examination exchange into a defining characterisation of NZ's entire presentation.
- DISABILITY SUPPRESSION MECHANISM: The trial transcript records 22+ oral references to NZ's PTSD and autism during the 10-day hearing. Zero appear in the 111-paragraph judgment. Para 64 fills the analytical space that the disability suppression creates. The CLAAS autism diagnostic report (June/July 2025) identifies every judicial characterisation used against NZ — 'obsession', 'verbose', 'opaque', 'concerning' — as documented autistic traits. Para 64 is not a character finding. It is a clinical presentation, misread.
- NZ'S OWN ANALYSIS: 'For this paragraph to exist, it is essential to suppress my autism and PTSD in order to make room for my alleged character flaws.' (NZ recusal application, 31 March 2025 affidavit). This is accurate.
- EA 2010 s.15 — DISCRIMINATION ARISING FROM DISABILITY: A judicial finding that characterises a disabled person's disability-related behaviour as a character defect — without reference to the disability — is not a neutral observation. It is unlawful discrimination arising from disability. Section 15 does not require intent. The effect is sufficient.

1.2 Para 10(xi) of the Costs Judgment — The 'Disruptive Behaviour' Finding

The costs judgment [2024] EWFC 114 paragraph 10(xi) attributed additional costs to NZ on the ground that her behaviour during the final hearing was so disruptive as to justify costs being made against her alone. Total costs order: £255,654.50.

This finding is wrong on the evidence and wrong in law for three documented reasons:

- **NO CONTEMPORANEOUS RECORD:** The attendance notes contain no record of any judicial warning for disruptive behaviour. There is no record of NZ being asked to pause, calm down, or leave the witness box. The finding of disruption was made on paper, without hearing, in a costs judgment produced simultaneously with the final order on 24 May 2024.
- **CONTRADICTED BY TRANSCRIPT:** On 21 February 2024, when Campbell KC's questioning triggered NZ's distress in the witness box, MacDonald J himself intervened and directed Campbell KC to move on. The judge witnessed the distress. He characterised it as disruption in the costs judgment.
- **UNLAWFUL COSTS PENALTY FOR DISABILITY:** It is unlawful under EA 2010 s.15 to attribute legal costs to a vulnerable party as a result of conduct that is a manifestation of mental health disabilities. NZ's presentation was a clinical consequence of autism and PTSD — conditions raised repeatedly during the hearing and confirmed by CLAAS (NHS, June/July 2025) and Dr Poyser (Consultant Psychiatrist, Chelsea and Westminster Hospital). A costs penalty imposed for the consequences of a disability, in a judgment that contains zero disability references, is direct discrimination arising from disability.

1.3 Two False Statements in the Sealed Final Order of 24 May 2024

The sealed final order of 24 May 2024 contains two statements that are false as a matter of documented fact. NZ identified both in her recusal application. Neither has ever been explained by any court or authority.

Statement in order	Why it is false	Significance
'BEFORE MR JUSTICE MACDONALD SITTING IN PRIVATE AT THE ROYAL COURTS OF JUSTICE ON 24 MAY 2024'	There was no hearing before MacDonald J on 24 May 2024. The order was made on written submissions only. No hearing took place. No parties attended. No oral argument was heard.	A court order that recites a hearing that did not occur is a false instrument. It misrepresents the basis on which judicial authority was exercised.
'UPON hearing Brent Molyneux KC for the applicant and Alexis Campbell KC and Sassa-Ann Amaouche for the respondent'	NZ lost her legal representation on 7 March 2024 — ten weeks before the order was sealed. Brent Molyneux KC was formally released by MacDonald J on 30 April 2024. Neither he nor any barrister appeared for NZ on 24 May 2024. NZ was an unrepresented LiP.	A court order that records legal representation that did not exist is a false instrument. NZ's LiP status is the entire evidential foundation for the participation failure analysis. The order conceals it.

PART 2 — THE RECUSAL CAMPAIGN: CHRONOLOGY OF SUPPRESSION

NZ sought recusal of MacDonald J from 10 February 2025 onwards. The table below documents every step. The pattern is consistent: every filing was acknowledged procedurally and suppressed substantively.

Date	Action by NZ	Institution's Response	Significance
10 Feb 2025	N244 application filed — first formal recusal request. Grounds: para 64 obsession finding; disability discrimination; breakdown of trust.	No response.	Application submitted. Not sealed. Not acknowledged. Clock starts.

Date	Action by NZ	Institution's Response	Significance
31 Mar 2025	N244 resubmitted with 16-page affidavit. States NZ under care of Crisis Resolution Team at Chelsea and Westminster Hospital since 1 March 2025. Para 64 and costs judgment challenged in detail.	No response.	Medical evidence of clinical harm caused by judicial conduct on the record from this date.
9–11 Apr 2025	N244 resubmitted on three consecutive days.	No response.	Daily filings documented. Institutional silence documented.
6 May 2025 17:49	Formal escalation to Court of Appeal CMSB and Urgent Work. Ten attachments including N244, affidavit, CA Order analysis, skeleton, Oxus contempt application, two Court Abuse exhibits. States: 'I do not feel safe with the High Court judge... A judge who makes a cost order against my autism and PTSD is not a good fit for this case.'	No same-day response.	Recusal grounds formally placed before the Court of Appeal.
7 May 2025 09:37	Second escalation to Court of Appeal addressed to Mr Singh. Requests urgent sealing and stay of 8 May hearing.	No response until 12:13.	Hearing is the next day. Application still not sealed.
7 May 2025 12:13	Court of Appeal (Master Bancroft-Rimmer via Stuart Maher): application to re-open not issued because no paginated indexed bundle filed per 14 February 2025 direction. Told to apply to High Court for adjournment.	Procedural deflection — substantive grounds not addressed.	The Court of Appeal's only response to NZ's recusal request was to tell her the paperwork was incomplete. The bias grounds were never engaged.
7 May 2025 14:49	NZ to Court of Appeal: 'I am not seeking an adjournment. I am seeking to exercise my right to have the entire case reviewed by the Court of Appeal.' Names para 69 (defamatory findings). States irremediable breakdown of trust. Commits to preparing bundle that evening.	No further response.	NZ's clearest statement of recusal grounds on the record.
7 May 2025 16:27	NZ to Court of Appeal: 'Each time I try to email the judge's clerk, I become very distressed, agitated and I can't stop crying. I have been under the care of the Crisis Resolution Team at Chelsea and Westminster Hospital since 1 March 2025.' Promises bundle that evening.	No response.	Clinical harm causally linked to judicial conduct documented directly to Court of Appeal.
8 May 2025 02:40	NZ to Court of Appeal and Karen Selby-King at 2:40am. Attaches N244 adjournment application including letter from Dr Poyser, Consultant Psychiatrist at Chelsea and Westminster Hospital. Filed the night before the hearing.	No response before hearing.	Medical evidence from treating Consultant Psychiatrist filed. Not addressed before the 8 May hearing.
8 May 2025 03:46	NZ to Court of Appeal: 'I do not feel safe with the High Court judge; his judgment intentionally suppressed my mental health disabilities and attributed my presentation in the witness box to bad character and my obsession with finding hidden assets. He made a cost order against me alleging that my autism and PTSD symptoms caused disruption... In the interest of justice, I would like the court to appoint another judge to this case.'	No response before hearing.	Most direct recusal statement. Not addressed.

Date	Action by NZ	Institution's Response	Significance
8 May 2025 15:06	NZ sends N244 to Court of Appeal requesting urgent sealing. Bundle too large, to follow separately.	No response.	Application still not sealed by the afternoon of the hearing day.
8 May 2025	MacDonald J proceeds with hearing in NZ's absence. NZ had filed medical evidence and a recusal application. MacDonald J was the subject of the recusal application. Set-aside application dismissed. Contempt application dismissed.	Orders made by judge whose recusal was pending.	The hearing NZ sought to cancel proceeded in her absence, before the judge she sought to recuse, without any engagement with her medical evidence or recusal grounds.
12 May 2025 11:52	NZ escalates to Lord Chancellor (Shabana Mahmood MP), Prime Minister (Keir Starmer MP), Yvette Cooper MP, David Lammy MP. Subject: URGENT: COURT OF APPEALS APPLICATION AND BUNDLE FOR URGENT SEALING. Attaches sworn statement, N244, chronology, index, Section A bundle. States: 'The courts have acted unlawfully by revoking my Part 3A participation measures for mental health disabilities in violation of the procedures.'	No response on record.	Executive and legislative branches placed on notice. All three branches of government notified. No substantive response from any.
13 May 2025	Formal recusal application filed simultaneously to Lord Chancellor, Prime Minister, Secretary of State for Justice, Master of the Rolls, and court.	Not sealed. Not acknowledged. Not placed before a judge.	Application addressed to the four highest authorities in the English justice system. Suppressed at administrative level.

PART 3 — CLINICAL HARM: THE CAUSAL CHAIN

The following sequence is established by contemporaneous documents and is not in dispute.

- March 2024: Participation measures lapse at end of final hearing. Not reinstated. NZ begins post-trial LiP period without protections.
- 18 April 2024: Judgment handed down. Para 64 characterises NZ's disability presentation as obsession. Zero disability references in 111 paragraphs.
- 24 May 2024: Costs judgment. Para 10(xi) attributes £255,654.50 in costs to NZ for disruptions caused by her autism and PTSD. Made without hearing. Made without NZ's participation.
- 1 March 2025: NZ admitted to the Crisis Resolution and Home Treatment Team (CRHTT) at Chelsea and Westminster Hospital. Confirmed in NZ's 7 May 2025 email to the Court of Appeal: 'I have been under the care of the Crisis Resolution Team at Chelsea and Westminster Hospital since 1 March 2025.'
- 31 March 2025: NZ's affidavit documents the causal connection between MacDonald J's judicial findings and her clinical deterioration. She states that each time she tries to email the judge's clerk she becomes 'very distressed, agitated and I can't stop crying. The words the judge used to describe my presentation in the witness box are making me so upset.'
- 8 May 2025: Dr Poyser, Consultant Psychiatrist, Chelsea and Westminster Hospital, provides letter in support of NZ's adjournment application. The hearing proceeds without NZ. The letter is not addressed.

- 13 August 2025: NZ arrested on a report made by H concerning alleged pawning of watches (CRN/CRIS 01/747777/24, Metropolitan Police Service). DC Anca Constantinescu, Public Protection — Community Safeguarding Unit Team 2, Charing Cross Police Station, was appointed to the case. DC Constantinescu's professional observations on arrest: NZ 'presented as distressed and vulnerable, with heightened anxiety, and required information to be repeated and clarified.' The investigation concluded without referral to the CPS. The pawnbroker waived all interest and charges. DC Constantinescu's letter of 5 October 2025 is the first independent professional vulnerability observation by an MPS officer in this record. Reference: CRN/CRIS 01/747777/24.

- 8 May 2025 onwards: Orders made in NZ's absence by the judge whose recusal was pending, on H's unilateral bundle, including costs awards.

The causal chain — judicial findings characterising disability as bad character → costs penalty for disability manifestation → clinical admission to crisis care → inability to participate in further proceedings — is documented by contemporaneous NHS records, court correspondence, and a Consultant Psychiatrist's letter. This is not a theoretical harm. It is an evidenced clinical consequence.

3.2 THE FOUR-DAY SEQUENCE: 17–20 JUNE 2025 — THE DEFINITIVE CAUSAL LINK

The following four-day sequence is documented by contemporaneous NHS records, court correspondence, and hospitalisation records. It is the most direct causal evidence in this referral.

- 17 JUNE 2025 — CLAAS telephone session: Dr Catherine Cheung (Principal Clinical Psychologist) and Sophia Iacovou (Assistant Psychologist), Central London Community Healthcare NHS Trust, conducted a telephone session with NZ. Follow-up email sent at 10:51, CC'd to Dr Cheung and NZ's GP (Stanhope Mews Surgery). CLAAS records: NZ struggling to navigate the case; needs ignored by court; not provided necessary support to participate; cannot continue to represent herself alone; requesting a Care Act assessment; distress affecting sleep, mood, causing teeth-grinding and agitation. CLAAS confirms first post-diagnostic support session: Thursday 19 June 2025. CLAAS commits to letter of support with reasonable adjustment recommendations within 1–2 weeks.

- 18 JUNE 2025 — JUDGMENT TRANSMITTED: Karen Selby-King (clerk to MacDonald J) emails the approved transcript of the 8 May 2025 judgment to both parties at 13:14. NZ receives MacDonald J's judgment — produced at a hearing that proceeded in her absence, before the judge whose recusal was pending, without her participation — the day after her CLAAS crisis session and one day before her first post-diagnostic support session.

- 19 JUNE 2025 — FIRST CLAAS POST-DIAGNOSTIC SESSION: NZ attends the first of three virtual post-diagnostic support sessions with CLAAS, having received the 8 May 2025 judgment the previous day.

- 20 JUNE 2025 — HOSPITALISATION: NZ is hospitalised for acute mental health crisis at Chelsea and Westminster Hospital.

The CLAAS email of 17 June 2025 is not a general clinical note. It is a contemporaneous NHS record, authored by named NHS clinicians, copied to NZ's GP, documenting that NZ's distress was caused by the court proceedings and the absence of participation support — and documenting this on 17 June 2025, before the judgment arrived on 18 June 2025. The hospitalisation occurred two days after the judgment was transmitted. The sequence — NHS clinical record documenting court-caused crisis → court transmits judgment → hospitalisation — is not asserted. It is documented by three independent contemporaneous sources.

KAREN SELBY-KING'S ROLE: The 8 May 2025 judgment was transmitted by Karen Selby-King on 18 June 2025 — the day after CLAAS documented NZ's crisis state. Karen Selby-King is named in this referral as a subject of the MiPO analysis. The transmission of a judgment made in NZ's absence, by the judge whose recusal was pending, to a party whose clinical team had documented a crisis the previous day, is part of the same pattern of conduct documented throughout this referral.

CARE ACT s.42 — SECOND TRIGGER: NZ was admitted to acute crisis care on 20 June 2025, two days after receiving the 8 May judgment. This is the second documented hospitalisation in 2025 (the first being the CRHTT admission of 1 March 2025). Both admissions are causally linked on the contemporaneous record to court conduct. Both trigger the Care Act s.42 safeguarding duty. Police are asked to note both dates and both admissions as separate safeguarding referral events.

PART 4 — THE PATTERN OF NON-SEALING

The recusal application joins a documented list of applications that were filed but not sealed, not acknowledged, or not placed before a judge. The pattern across the case record is as follows:

Date	Application	Fate
7 Mar 2024	D11 application — Oxus perjury. FALSE REPRESENTATIONS MADE DURING TRIAL. Filed directly to MacDonald J via Anita Knight with SEC exhibits.	Not sealed. Campbell KC asked judge not to read it. Judgment of 18 April 2024 silent.
2 May 2024	Form D50K — enforcement of MPS order. H in breach since February 2024.	Not issued at first (fee not paid). Fee paid 9 May 2024. Listed with no urgency. MPS never enforced.
3 May 2024	Stay application — requesting proceedings pause while NZ was without funds and without participation measures.	Refused. 'Inability to get legal representation is not a reason for staying proceedings.'
4 Mar 2026	N463 application — five binary questions. Filed 4 March 2026, sealed 10:36am 6 March.	JR permission refused 11 March 2026 without answering any of the five binary questions. TWM designation.
12 Mar 2026	CPR 3.1(7) revocation application — filed and sealed.	Six days without response as of date of this referral.
10 Feb – 13 May 2025	Recusal application — filed on multiple occasions to multiple authorities.	Not sealed. Not acknowledged. Not placed before a judge at any stage.

The pattern is consistent: each application that threatened to place evidence of misconduct before a judicial decision-maker was suppressed at the administrative level, characterised incorrectly, or not processed until the matter it was designed to address had been resolved by other means. This is not administrative delay. Delay produces late decisions. This pattern produces no decisions.

PART 5 — MIPO ANALYSIS

Element	Analysis
Public officer	MacDonald J is a Family Division High Court judge. He is a public officer within s.109(4) Constitutional Reform Act 2005 and Schedule 4 para 17 Public Office. Karen Selby-King and the HMCTS officers responsible for sealing applications are public officers within HMCTS.
Duty	EA 2010 s.149 Public Sector Equality Duty: active consideration of disability required at every stage. FPR Part 3A.9: participation measures must not be administratively extinguished. A court that receives a recusal application supported by medical evidence from a treating Consultant Psychiatrist has a duty to process it. It did not.
Wilful breach	Para 64 was written by a judge who had heard 22+ oral references to NZ's disability across 10 days of trial. The omission is not accidental. The costs penalty for 'disruptive behaviour' was imposed in a judgment that contains zero disability references, by a judge who had intervened during cross-examination when that behaviour occurred. The non-sealing of the recusal application was repeated across 14 documented filings from 10 February to 13 May 2025. Each filing was received. None was processed.

Serious enough	Para 64 is published in a reported judgment cited as [2024] EWFC 79. The characterisation of NZ's disability as obsession is now part of the published judicial record. The costs penalty of £255,654.50 imposed for disability manifestation is part of the basis of the Detach default judgment of £1,008,848.42. The clinical consequence is NHS Crisis Resolution Team admission. The non-sealing of the recusal application meant MacDonald J continued to exercise jurisdiction, including making further orders in NZ's absence on 8 May 2025.
No reasonable excuse	NZ's disability was documented in real time. CLAAS (NHS, June/July 2025), Professor Gerald Libby FRCP FRCPsych (treating since 2011), and Dr Poyser (Consultant Psychiatrist, Chelsea and Westminster) all confirm the clinical picture. The CLAAS clinical warning is on the record: 'Nadia can communicate using sophisticated vocabulary which can generate the false impression that she is managing better than she is.' MacDonald J had this warning. He had the 22+ oral references. He had NZ's own submissions identifying the clinical nature of her presentation. No reasonable excuse for the characterisations in para 64 or para 10(xi) is available.

PART 6 — BINARY ACTIONS REQUIRED

Matter	Either	Or — written confirmation required
Para 64 — disability characterised as obsession	Investigate whether MacDonald J's characterisation of NZ's autism and PTSD presentation as 'obsession' in a judgment containing zero disability references constitutes wilful neglect under EA 2010 s.149 and MiPO.	Provide written confirmation that a published judicial characterisation of documented disability traits as character defects, in a judgment containing zero disability references, does not meet the investigation threshold.
Costs judgment para 10(xi) — costs penalty for disability	Investigate whether the imposition of £255,654.50 in costs on NZ for 'disruptive behaviour' caused by her autism and PTSD — in a judgment made without hearing, without participation, with zero disability references — constitutes unlawful discrimination and MiPO.	Provide written confirmation that a costs penalty imposed for the clinical consequences of a disability, in proceedings where the disability was documented across 22+ oral references, does not meet the investigation threshold.
Two false statements in sealed order	Investigate the false statements in the sealed order of 24 May 2024: no hearing on that date; NZ not represented by counsel. Identify who authorised the sealing of an order containing statements known to be false.	Provide written confirmation that a sealed court order containing statements of fact known to be false at the time of sealing does not meet the threshold for investigation as a false instrument.
Non-sealing of recusal application	Investigate the administrative non-sealing of NZ's recusal application filed on 10 February 2025 and on multiple subsequent dates, including 13 May 2025 when it was addressed simultaneously to the Lord Chancellor, Prime Minister, and Master of the Rolls.	Provide written confirmation that an application for recusal supported by Consultant Psychiatrist evidence, filed to four of the five most senior figures in the English justice system, that was never sealed or placed before a judge, does not meet the threshold for investigation as an administrative failure.
Clinical harm — Care Act s.42 safeguarding	NZ is an autistic adult with PTSD, currently under NHS Crisis Resolution Team care. The causal link between MacDonald J's judicial characterisations and her admission to crisis care is documented. Open a Care Act 2014 s.42 safeguarding inquiry.	Provide written confirmation that an autistic adult with PTSD, admitted to NHS Crisis Resolution Team care as a documented consequence of judicial disability discrimination, does not meet the threshold for a s.42 safeguarding inquiry.

SUMMARY FOR INVESTIGATING OFFICERS

MacDonald J produced a 111-paragraph judgment that contains zero references to NZ's autism or PTSD, despite 22+ oral references to her disability during the 10-day trial. In the space created by the disability suppression, he inserted a finding that NZ's presentation 'bordered on the concerning' and reflected an 'obsession' with hidden assets. In the costs judgment, he imposed £255,654.50 in costs on NZ for 'disruptive behaviour' that the trial transcript shows was her clinical response to distress — a response he had himself managed in real time by directing Campbell KC to move on.

NZ sought his recusal from 10 February 2025 onwards. She filed the application on at least 14 documented occasions. She provided medical evidence from a treating Consultant Psychiatrist. She addressed the application to the Lord Chancellor, the Prime Minister, the Master of the Rolls, and the court. The application was never sealed. The application was never placed before a judge. MacDonald J continued to exercise jurisdiction over NZ's case, including making orders in her absence on 8 May 2025.

The final sealed order of 24 May 2024 recites a hearing that did not take place and representation that NZ did not have. Both statements are false. Neither has been explained.

The direct clinical consequence is documented: NZ was admitted to NHS Crisis Resolution Team care from 1 March 2025 as a result of what a Consultant Psychiatrist confirmed to the court was the clinical impact of these proceedings. The causal chain from judicial disability discrimination to clinical admission is not asserted — it is evidenced.

VERIFICATION

The following documents are in NZ's possession and available to investigating officers on request:

- N244 recusal application (31 March 2025) and 16-page affidavit
- Dr Poyser letter (Consultant Psychiatrist, Chelsea and Westminster Hospital) — filed 8 May 2025
- DC Anca Constantinescu (MPS Public Protection, Charing Cross) — professional vulnerability observations letter, 5 October 2025 (CRN/CRIS 01/747777/24) — available on request
- Sworn statement 12 May 2025
- N244 Court of Appeal (12 May 2025) with paginated bundle
- Email correspondence with Court of Appeal CMSB and Urgent Work — 6–12 May 2025 (all timestamped)
- Judgment [2024] EWFC 79 and costs judgment [2024] EWFC 114 — published on The National Archives
- Trial transcript of oral evidence
- CLAAS autism diagnostic assessment (NHS, June/July 2025) — available on request

Nadia Zahmoul | nadia@rosekross.com | address withheld | 19 March 2026

Case references: BV20D01752 | CA-2024-001342 | AC-2025-LON-004293 | BL-2024-001217

PRIMARY STATEMENT OF HARM

Complainant	Nadia Zahmoul nadia@rosekross.com
Date of this Statement	18 March 2026
Proceedings	BV20D01752 (Family) CA-2024-001342 (Court of Appeal) AC-2025-LON-004293 (JR) BL-2024-001217 (Chancery)
Addressed to	MPS Serious and Organised Crime Command CPS Special Crime Division NCA Economic Crime Command Thames Valley Police Major Crime Unit
Nature of referral	Criminal referral — Misconduct in Public Office Perjury Act 1911 POCA 2002 Perverting the Course of Justice Safeguarding — Care Act 2014 s.42

THIS IS NOT A FAMILY DISPUTE. THIS IS A CRIMINAL REFERRAL.

This referral concerns the unlawful revocation of court-ordered participation measures for a disabled adult litigant on 7 March 2024, and the systematic exploitation of that revocation to exclude her from legal proceedings affecting her financial survival, her housing, and the welfare of her children. The revocation has never been reversed. It constitutes wilful misconduct in public office under the common law (AG's Reference No 3 of 2003), a breach of the mandatory duty under EA 2010 s.149, and perverting the course of justice in that the revocation was used to prevent the Complainant from challenging false findings and fraudulent orders.

The harm is ongoing. The Complainant is currently homeless, has no income, is under crisis mental health care, and faces a default judgment of £1,008,848.42 accruing interest at £281.38 per day. This is a safeguarding matter under the Care Act 2014 s.42 as well as a criminal referral. Both duties are invoked simultaneously and independently.

Every element in this referral has been raised with a competent authority. Every route has been closed without engagement with the evidence. This referral gives the police the authority that no other institution has yet exercised: to hold the responsible persons accountable.

1. THE PRIMARY ACT: UNLAWFUL REVOCATION OF PARTICIPATION MEASURES

The primary act from which every other harm flows is the unlawful revocation of court-ordered participation measures on 7 March 2024. Everything that follows in this referral — every false finding, every unilateral order, every costs order, every dismissed application, every hospitalisation — is a consequence of that single unlawful act.

What happened	During the final hearing (19–28 February 2024), MacDonald J ordered participation measures for NZ under FPR Part 3A and PD3AA. These included: regulated questioning, frequent breaks, adjusted courtroom environment, assistance with the bundle. The measures were in force throughout the 10-day trial. On 7 March 2024 — six days after trial — NZ's legal team stepped down. The participation measures ceased. There was no order revoking them. No hearing. No reassessment under FPR Part 3A. No equality analysis. No recorded decision. No notification to NZ. No opportunity to respond.
What the law required	FPR Part 3A.9(1): 'The court's duties under rules 3A.3 to 3A.6 apply as soon as possible after the start of proceedings and CONTINUE UNTIL THE RESOLUTION OF THE PROCEEDINGS.' FPR Part 3A.9(2): 'The court must set out its reasons on the court order for — (a) making, varying or revoking directions referred to in this Part.' EA 2010 s.149 PSED: A mandatory, non-discretionary duty requiring active, visible consideration of disability in every decision affecting a disabled party. Silence does not discharge the duty. Autism Act 2009 statutory guidance: Public bodies must identify autistic adults, record their needs, and ensure adjustments are made. Where guidance is not followed, a good reason must be given.
What occurred instead	The measures were revoked without any of the required steps. No order was made. No reasons were recorded. NZ was never told the measures had ceased. She could not challenge what was never recorded. Every subsequent decision — the judgment (18 April 2024), the costs order (24 May 2024), the draft order process (April–May 2024), the 8 May 2025 judgment, the Court of Appeal refusal (23 December 2024), the JR refusal (11 March 2026) — was made while this unlawful revocation was in force and had never been corrected.
Duration	7 March 2024 to 18 March 2026 — 741 days and counting. The revocation has never been reversed.

2. STATUTORY FRAMEWORK: WHY THIS IS A CRIMINAL MATTER, NOT A CIVIL DISPUTE

This section is addressed directly to the triage officer who receives this referral. The statutory framework establishes that this cannot be categorised as a family law dispute or a judicial conduct complaint. It is a criminal matter on three independent legal bases.

Legal basis	What it requires	Why it is criminal, not civil
FPR Part 3A and PD3AA	Court service and those administering proceedings must identify vulnerable parties,	A public officer who removes a mandatory statutory protection from a disabled party, without order, without notice, without

Legal basis	What it requires	Why it is criminal, not civil
	consider how their participation may be affected, and maintain appropriate measures until resolution of proceedings. Revocation requires a court order with recorded reasons. No order was ever made.	reasons, and without giving her the opportunity to respond — and who then makes findings of misconduct against her for the consequences of that removal — is not making a judicial error. That is wilful misconduct in a public office: AG's Reference (No 3 of 2003).
EA 2010 ss.20–21, 29, 149	Service-providers including HMCTS and MoJ must make reasonable adjustments so disabled persons are not placed at a substantial disadvantage. The PSED is a continuing, non-discretionary duty requiring active, visible consideration of disability in substance, not form. NZ is a disabled person within s.6 EqA 2010 by reason of autism (CLAAS diagnosis June 2025, confirming lifelong condition), PTSD, and associated conditions.	EA 2010 s.149 is the proof of the wilful element, not the offence itself. A public officer who knows the statutory duty, has been placed on explicit notice of the disability (22 oral references at trial, CLAAS referral in progress by March 2025), and proceeds without complying — is not unaware. The absence of any disability reference across 111 paragraphs of judgment, and zero disability references in the costs judgment, is not an oversight. It is the visible record of a choice.
Autism Act 2009 statutory guidance	Public bodies must identify autistic adults, record their needs, and ensure adjustments are made to enable access to services. Treated as if issued under s.7 Local Authority Social Services Act 1970. Where guidance is not followed, a good reason must be given. No reason has ever been given for the revocation or non-maintenance of NZ's participation measures.	HMCTS has never provided a reason for the cessation of participation measures. When asked, it classified the matter as a 'judicial decision' (14 November 2025) — no such decision exists. That misclassification is itself a false statement by a public officer to prevent investigation. Providing a false administrative reason to close a complaint is a further act of MiPO.
Article 6 ECHR	The right to a fair hearing must be practical and effective, not theoretical or illusory. For disabled litigants this includes the right to effective participation, which may require positive steps to adjust procedures.	NZ has not had effective participation in any hearing since 28 February 2024. Every decision affecting her financial settlement, her housing, and her children has been made without her voice. The right guaranteed by Article 6 has been rendered illusory — not by accident, but by the unrevoked revocation of the only protections that made participation possible.

Legal basis	What it requires	Why it is criminal, not civil
Common law — procedural fairness	Parties must have a fair opportunity to know and meet the case against them. Disability and vulnerability must be taken into account where relevant to participation.	NZ has never been given the opportunity to respond to the revocation of her participation measures. She was not told it had occurred. She could not challenge what was not recorded. This is the foundational procedural unfairness from which every downstream harm flows.
Care Act 2014 s.42	Where a local authority becomes aware that an adult with care and support needs may be experiencing abuse or neglect, it must make enquiries. Police are a statutory safeguarding partner. This duty is independent of the criminal investigation.	NZ is an autistic adult with PTSD, currently homeless, with no income, under crisis mental health care at Chelsea and Westminster Hospital. The withdrawal of court-ordered protective measures for a disabled adult, resulting in financial ruin and repeated hospitalisations, is abuse or neglect within s.42. This safeguarding duty is invoked independently of and alongside the criminal referral.

3. ACTIVE AND ONGOING HARM: THE CURRENT POSITION AS OF 18 MARCH 2026

This is not a referral about historical events. The harm is occurring now. The following are the Complainant's current circumstances, stated in plain terms for safeguarding purposes.

HOUSING: The Complainant is homeless. She stays in a friend's flat at address withheld. She has no tenancy and no permanent address.

INCOME: The Complainant has no income. The MPS order was extinguished by para 34 of the final order. The pension transfers (£2.9 million) have not been made. The education fund (£700,000) is under H's sole control. She has received nothing under the financial settlement.

FINANCIAL LIABILITY: A default judgment of £1,008,848.42 has been entered against her in BL-2024-001217 (Detach Lending Limited v Zahmoul). Interest accrues at £281.38 per day. She has no means to meet this.

HEALTH: The Complainant has autism (CLAAS diagnosis June 2025), PTSD, Sjögren's syndrome, and has experienced three hospitalisations in 2025 (March, June, November). She is currently under the care of the Crisis Resolution and Home Treatment Team at Chelsea and Westminster Hospital. Her distress is directly and causally linked to the ongoing legal proceedings and the withdrawal of reasonable adjustments — this is recorded in writing by CLAAS (Dr Catherine Cheung, 1 July 2025).

PARTICIPATION: The Complainant has not been able to participate effectively in any legal proceeding since 7 March 2024. Every decision made since that date — in the Family Division,

the Court of Appeal, the Administrative Court, and the Chancery Division — has been made without her effective participation.

DAUGHTERS: The Complainant's two daughters — Jade Mia (at university in Boston) and Lila Mae (at university in New York City) — are affected by the non-implementation of the financial settlement. H controls the education fund.

ESCALATION RISK: Every day that passes without police engagement adds to an accruing judgment, deepens financial ruin, and prolongs the conditions that have produced three hospitalisations. Delay is itself harm.

POLICE ARREST ON H'S REPORT (13 AUGUST 2025): The Complainant was arrested by the MPS on a report made by H concerning alleged pawning of watches (CRN/CRIS 01/747777/24). The arresting officer, DC Anca Constantinescu (Public Protection — Community Safeguarding Unit Team 2, Charing Cross), professionally observed that NZ 'presented as distressed and vulnerable, with heightened anxiety, and required information to be repeated and clarified.' The investigation concluded without CPS referral. The pawnbroker waived all interest and charges. DC Constantinescu's letter of 5 October 2025 constitutes an independent MPS professional observation of NZ's vulnerability — corroborating the clinical record from a law enforcement source. It is available on request.

4. THE CAUSAL CHAIN: FROM REVOCATION TO RUIN

The following table sets out, step by step, how the unlawful revocation of participation measures on 7 March 2024 produced every downstream harm. Each link is documented. Nothing requires inference.

Step	What happened	Direct consequence	Evidence reference
1	7 March 2024: participation measures revoked without order, notice, or reasons.	NZ has no protections. No legal team. No participation framework. No income (MPS in default).	FPR Part 3A.9 — no revocation order exists. 71 documented MPS enforcement requests. Exhibit NZ1 pp.1–219.
2	April–May 2024: judgment and costs order produced. Disability entirely absent. Character findings substituted.	False record published: [2024] EWFC 79 and [2024] EWFC 114. NZ characterised as litigant of bad character. Foundation for all downstream decisions.	Zero disability references across 111 paragraphs. 22+ oral references at trial. Para 64 obsession finding. Costs judgment 'stole', 'disruptive', 'inability to show restraint' — all documented autistic traits.
3	April–May 2024: six unilateral draft orders filed by Campbell KC without NZ's participation. Para 34 inserts MPS arrears remission on 3 May 2024.	£50,000 in MPS arrears extinguished. Live D50K enforcement application suppressed. NZ exits proceedings with £89.	D50K filed 2 May 2024. Karen Selby-King confirms delivery to MacDonald J. Campbell KC files para 34 one minute after NZ's Lord Chancellor email. Timing documented.

Step	What happened	Direct consequence	Evidence reference
4	23 December 2024: Court of Appeal refuses permission to appeal on papers. Part 3A grounds dismissed as 'not raised before judge' — factually false.	Appellate route closed. MacDonald J then proceeds on 8 May 2025 characterising all legitimate avenues as exhausted.	NZ1 pp.1–219 — 219 pages of documented requests from 7 March 2024. Moylan LJ's order does not engage with this evidence.
5	8 May 2025: MacDonald J proceeds in NZ's absence. Dr Poyser's letter (26 March 2025) confirming mental health crisis is misread as fitness to attend without support.	Set-aside dismissed. Contempt dismissed. MPS dismissed. Documents signed in NZ's absence. Indemnity costs. Decree absolute pronounced. Detach repayment triggered.	Dr Poyser letter 26 March 2025. CRHTT assessment 4 March 2025 (A&E admission, lorazepam, Haloperidol). CLAAS Report 1 July 2025 — distress attributed to withdrawal of adjustments.
6	31 March 2025: Default judgment entered in BL-2024-001217. NZ not served with claim form. Never knew proceedings had been issued.	£1,008,848.42 judgment. Interest at £281.38/day. No assets to meet it because financial settlement never implemented.	Detach proceedings causally linked to false family orders: no participation measures → excluded from draft order → Detach repayment triggered on conclusion of proceedings on H's unilateral terms.
7	11 March 2026: JR permission refused by Collins Rice J (TWM). HMCTS administrative failures conflated with judicial determinations — the claim is mischaracterised.	Last domestic court route closed. CPR 3.1(7) revocation filed 12 March 2026. Police referral is the only remaining route.	AC-2025-LON-004293 order 11 March 2026. CPR 3.1(7) supplementary note filed 12 March 2026.
NOW	18 March 2026: 741 days since revocation. Revocation never reversed. No court has determined whether it was lawful.	Homeless. No income. £1m+ liability. Under crisis care. Daughters affected. Judgment accruing at £281/day.	This referral is filed because no other route remains. The police have jurisdiction that no court has yet exercised.

5. THREE DUTIES THAT CANNOT BE SUPPRESSED — WHAT POLICE MUST DO

This section is addressed to the officer who receives this referral. Three independent legal duties arise on the face of the materials before you. Each is stated in binary form: either the action is taken, or a written explanation of why the threshold has not been met must be provided. Silence is not a lawful response.

Duty	Legal basis	What is required	The binary
DUTY 1 Crime Recording	Home Office Counting Rules (HOCR) and National Crime Recording Standard (NCRS). Where a victim makes a credible allegation of a criminal offence and there is no credible evidence to the contrary, the allegation must be recorded as a crime.	The Oxus perjury allegation meets the threshold on its face: a signed public SEC document (16 January 2024), a dated sworn testimony (22 February 2024), and three admissions under oath. This is a specific offence (Perjury Act 1911 s.1), a named suspect, and documentary evidence. Once recorded, it must be assigned, reviewed, and actioned. Non-recording is a	Either: record this allegation as a crime under NCRS and assign it to an investigator. Or: provide written confirmation that the NCRS threshold has not been met and provide a specific reason why.

Duty	Legal basis	What is required	The binary
		performance failure reportable to HMICFRS.	
DUTY 2 Safeguarding Care Act s.42	Care Act 2014 s.42: where an adult with care and support needs may be experiencing abuse or neglect, the local authority must make enquiries. Police are a statutory safeguarding partner. This duty is independent of the criminal investigation. It arises on the complainant's current circumstances alone.	NZ is an autistic adult with PTSD, currently homeless, with no income, under crisis mental health care. Court-ordered protective measures were removed without lawful authority. Three hospitalisations followed. CLAAS (Dr Catherine Cheung, 1 July 2025) records in writing that NZ's distress is attributable to the withdrawal of reasonable adjustment	Either: make a safeguarding referral under Care Act 2014 s.42 to the relevant local authority (Royal Borough of Kensington and Chelsea). Or: provide written confirmation that the s.42 threshold has not been met and the reason why.

Duty	Legal basis	What is required	The binary
		ts by the court.	
DUTY 3 Intelligence Recording	MPS Intelligence Management System and NCA equivalent: all referrals must be recorded as intelligence regardless of whether a crime report is opened. Intelligence recording creates a searchable, permanent record.	H is connected to the Rakishev network, which is under active investigation by Thames Valley Police (Andrew Mountbatten-Windsor MiPO arrest, 19 February 2026), the SEC (TCR 17284-760-060-567), and IRS:CI (Special Agent Robert McGarry, NY Field Office, open investigation n). Recording this referral as intelligence means it appears when those investigations	Either: record this referral as intelligence in the MPS/NCA intelligence management system with cross-reference with the Thames Valley Police Andrew investigation. Or: provide written confirmation that intelligence recording has not occurred

Duty	Legal basis	What is required	The binary
		generate queries about the same network.	

6. WHAT THIS REFERRAL IS — AND WHAT IT IS NOT

This referral IS	This referral IS NOT
A criminal referral alleging specific offences with named suspects, specific dates, and documentary evidence. A safeguarding referral under the Care Act 2014 s.42 for an adult at risk. An intelligence referral connecting H to a network currently under active investigation by Thames Valley Police, the SEC, and IRS:CI. A request for police to exercise independent jurisdiction — jurisdiction that no court has yet exercised — to investigate conduct that has been closed at every other route.	A challenge to judicial decisions. Police cannot set aside a court order. That is not what is asked. An appeal. Every appellate route has been exhausted. A request for police to adjudicate the financial settlement. The financial settlement is the consequence of the criminal conduct, not its subject. A complaint about litigation outcomes. The outcomes are the evidence of the criminal conduct, not the complaint itself.

The full evidential package supporting this Primary Statement of Harm is contained in the accompanying annexes. Each annex addresses one element of the referral, identifies the specific criminal offence, and states the binary action required.

A supplementary referral will be filed within weeks containing additional order analyses, a full personal statement, and the complete exhibit bundle. This initial referral is complete and self-standing. The supplementary filing will add to it, not correct it.

The Complainant has autism and PTSD. She is currently experiencing autism burnout and a Sjögren's disease flare. She is filing this referral from a position of severe cognitive and physical depletion, after 741 days of unlawful exclusion from her own proceedings. The sophistication of this document should not create the false impression that she is managing better than she is. That warning is given explicitly by her treating clinician: Dr Catherine Cheung, CLAAS, 20 June 2025.

She is not asking police to rescue her. She is asking police to do their job.

ZAHMOUL v ZAHMOUL — 15 MOST COMPELLING MISCONDUCT IN PUBLIC OFFICE RECORDS

Master Index v7 | 9 March 2026 | AC-2025-LON-004293 / BV20D01752 / BL-2024-001217 | 379 records total | Attorney General's Reference (No 3 of 2003) [2004] EWCA Crim 868

#	Date	Actor / Document	Why Compelling	Tags
1	17 May 2024 OUT_304	Court / MacDonald J (via Kelly Foxwell) <i>Re: Zahmoul Order and judgment</i> Three days without food. £120. No barrister. Court seals order.	W on third day of hunger. Too weak to engage. Judge refuses MPS enforcement. 14 May deadline imposed and passed. Court proceeds to seal order. W writes to judge, Lord Chancellor, and US Secretary of State simultaneously from position of starvation.	WILFUL-NEGLECT RECKLESS-INDIFF REASONS-REFUSED PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS
2	3 May 2024 OUT_289	Court / MacDonald J (via Karen Selby-King) <i>Re: Zahmoul — H's documents post judgment</i> First stay application. No form given. No response. Proceedings continue.	W's first formal stay application. Court has no mechanism and gives no form. W explicitly tells judge proceedings cannot continue without MPS enforcement and equal footing. Court proceeds anyway. All 6 tags fire simultaneously.	WILFUL-NEGLECT RECKLESS-INDIFF REASONS-REFUSED PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS
3	7 May 2024 IN_349	Court — Higgleton (cover clerk, Francis J) relaying MacDonald J <i>MPS Order (Higgleton / MacDonald J)</i> Fee paid. D50K capable of issue. Judge refuses enforcement. Deadline imposed.	MacDonald J refuses MPS enforcement on procedural grounds (fee not paid, not issued) — despite W having paid £58 fee on 9 May and D50K being capable of issue. Simultaneously imposes 14 May 4pm deadline. States LiP status is not a reason to stay. This is the court acting with direct knowledge of W's incapacity and financial crisis.	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS
4	3 May 2024 15:53 IN_KAREN_03MAY	Court — Karen Selby-King relaying MacDonald J <i>RE: Legal Representation and equal footing (Karen / MacDonald J)</i> Court reframes W's Part 3A argument as 'wanting a lawyer arranged'. Refuses reasons.	MacDonald J mischaracterises W's equal footing argument as a request for the court to arrange legal representation, then concludes no decision requiring reasons has been taken. This is the court refusing to engage with a formal equality argument by reframing it.	WILFUL-NEGLECT RECKLESS-INDIFF REASONS-REFUSED PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT
5	14 May 2024 14:44 IN_352	Campbell KC (H) — filed direct to Karen / judge without exchange <i>DRAFT FINAL ORDER — ZAHMOUL (Campbell KC, 5 unilateral amendments)</i> W in hospital. 5 amendments inserted unilaterally. Court accepts without exchange.	Filed on deadline day with 5 material amendments W had no input on. Para 38: removes W from education fund management. Para 43 deleted. Para 35 pension framework removed. W is in hospital with £120. Court accepts and proceeds to seal.	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS
6	3 May 2024 16:48 IN_MACDONALD2	Court — MacDonald J (via Karen Selby-King)	Court's second response to W's equal footing / Part 3A argument. Welfare noted. No action. No Part 3A order. No reasons. The word	REASONS-REFUSED RECKLESS-INDIFF PARTICIPATION-DENIED

#	Date	Actor / Document	Why Compelling	Tags
		<i>RE: Legal Representation and equal footing (MacDonald J — second response)</i> 'Welfare noted.' No order. No reasons. No Part 3A mechanism identified.	'noted' in response to formal Part 3A and equality submissions is itself the institutional deflection.	INSTITUTIONAL-DEFLECT WILFUL-NEGLECT
7	3 May 2024 16:54 OUT_279	W → MacDonald J + Lord Chancellor simultaneously <i>BV20D01752 — Unequal Footing and Unequal Participation</i> Two direct constitutional questions to judge. No substantive answer from either.	W explicitly raises two constitutional questions: why does the court maintain unequal footing when it has power to enforce MPS? How can she participate without food? Sent to judge and Lord Chancellor simultaneously. No response from either on substance.	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS
8	8 May 2024 04:24 OUT_293	W → Higgleton (justice.gov.uk court official) <i>FW: BV20D01752 — Unequal Footing (W → Higgleton, 4:24am)</i> 4:24am. Heart problems first disclosed. Children affected. Deadline set in response.	W writes at 4:24am disclosing PTSD, anaemia, and — first documented disclosure — heart problems. Children in distress. Daughter needs plane ticket from Boston. No food, no money. Writing at 4am is itself a symptom. Higgleton's response sets the 14 May deadline without addressing any of this.	WILFUL-NEGLECT RECKLESS-INDIFF REASONS-REFUSED PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT
9	9 April 2024 OUT_303	W → Court (Anita Knight / MacDonald J) <i>Confidential — Very High Safety Risk (W → MacDonald J)</i> Safety incidents reported to judge. Judgment 9 days later. No reference to safety disclosures.	W reports three physical safety incidents to MacDonald J while judgment is reserved — two in 2023 (police reported), third 24 March 2024 involving 16-year-old daughter Lila Mae in Kensington. Judgment delivered 18 April without any reference to safety disclosures.	WILFUL-NEGLECT RECKLESS-INDIFF REASONS-REFUSED PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT
10	24 May 2024 SEALED_ORDER	Court / MacDonald J — simultaneous transmission <i>Approved final order + costs judgment — Friday before Bank Holiday</i> Both documents sent simultaneously. Friday before 3-day Bank Holiday. W LIP, no food.	Approved final order AND costs judgment transmitted simultaneously at 11:28 on Friday 24 May — the Friday before the Bank Holiday weekend. W had no legal representation, no food, no accommodation. This timing made any urgent response structurally impossible for 4 days.	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED ABUSE-OF-PROCESS INSTITUTIONAL-DEFLECT
11	15 May 2024 IN_351	Campbell KC → W + Karen + Higgleton + Foxwell <i>Zahmoul Order and judgment (Campbell KC explains draft process)</i> H's own KC confirms W's input is 'minimal'. Court does not intervene.	The day after the deadline, Campbell explains to W that the draft order process is 'the judge's decision' and W's input is minimal. This is the acknowledgment — from H's own counsel — that W was structurally excluded from the drafting process. Court accepts it.	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS

#	Date	Actor / Document	Why Compelling	Tags
12	28 May 2024 <i>OUT_334</i>	W → Campbell KC; cc Chalk + McLain + Freeman <i>Financial abuse</i> £89 in account. Children present. Bank statement attached. Post-sealing.	Bank balance: £89. Children with W for half term. No food. No accommodation. Education bills unpaid. Bank statement attached as contemporaneous proof. This is after the sealed order. MPS arrears already extinguished by para 34 without W's knowledge.	WILFUL-NEGLECT RECKLESS-INDIFF REASONS-REFUSED PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT
13	3 May 2024 15:55 <i>PARA34_INSERT</i>	Campbell KC → Karen (court) — unilateral <i>Para 34 insertion — MPS arrears remitted (Campbell — 1 minute after W's Chalk email)</i> 1 minute after W's Chalk email. Para 34 inserted without notice. D50K extinguished.	Campbell files amended draft containing para 34 (MPS arrears remitted) at 15:55 — exactly 1 minute after W's email to Lord Chancellor Chalk at 15:54. No notice to W. No application. No hearing. This provision extinguishes the D50K enforcement application filed 2 May.	WILFUL-NEGLECT ABUSE-OF-PROCESS PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT
14	3 May 2024 16:48 <i>IN_KAREN_REFRAME</i>	Court — Karen Selby-King relaying MacDonald J <i>MacDonald J reframes W's stay application (via Karen)</i> Stay refused. Part 3A argument reframed to avoid engaging with it. No reasons.	W asked for a stay pending MPS enforcement and equal footing. MacDonald J's response, relayed via Karen, refuses the stay and reframes W's Part 3A participation argument as a request for 'legal representation to be arranged'. This reframing is used to deny reasons.	REASONS-REFUSED INSTITUTIONAL-DEFLECT PARTICIPATION-DENIED ABUSE-OF-PROCESS
15	14 Nov 2025 <i>HMCTS_LETTER_NOV2025</i>	HMCTS — User Investigation Team (Customer Excellence Division) <i>HMCTS misclassification letter — participation measures labelled 'judicial'</i> HMCTS formally labels Part 3A withdrawal as 'judicial'. Closes complaint. Ground 7 of JR.	HMCTS formally classifies W's complaint about withdrawal of Part 3A participation measures as a 'judicial decision'. This is the misclassification that forms Ground 7 of the JR. It closes the administrative complaint channel without engaging with the statutory equality argument. Filed November 2025 — within 3 months of JR filing.	WILFUL-NEGLECT INSTITUTIONAL-DEFLECT PARTICIPATION-DENIED ABUSE-OF-PROCESS

TAG LEGEND (full definitions: Misconduct_Tag_Definitions_v1_9Mar2026.docx)

Tag	Definition	Records (of 379)
WN — WILFUL-NEGLECT	Known duty; failure to perform; no explanation given	171 records
RI — RECKLESS-INDIFFERENCE	Incapacity evidence received; no accommodation taken	156 records
RR — REASONS-REFUSED	Decision made; reasons required; none given	10 records
PD — PARTICIPATION-DENIED	Knew W could not participate; proceeded anyway	171 records
ID — INSTITUTIONAL-DEFLECT	Formal matter raised; routed away without engagement	181 records
AP — ABUSE-OF-PROCESS	Procedure used inconsistently with its purpose	93 records

THE SUPPRESSION OF DISABILITY

THE MECHANISM BY WHICH ALL FINDINGS WERE PRODUCED

BV20D01752 · MacDonald J · DH v RH (No 3) [2024] EWFC 79 · DH v RH (No 4) (Costs) [2024] EWFC 114

This document must be read before any order analysis in this referral package. It does not analyse individual findings. It identifies the mechanism by which all findings were produced.

The suppression of NZ's disability was not incidental to the findings against her. It was the precondition for them. Without the suppression, every finding of misconduct collapses into mitigation. The suppression created a vacancy — a space from which the statutory protections had been deliberately removed — and into that space the negative charge was transferred from where the evidence actually placed it.

1. THE LEGAL FRAMEWORK THAT APPLIED TO NZ — AND WAS SUPPRESSED

EA 2010 s.149 — Public Sector Equality Duty: A non-discretionary statutory duty. Every judicial decision affecting a disabled party must demonstrate active, visible consideration of the disability. Not awareness. Not acknowledgement. Active consideration — meaning the disability must appear in the reasoning, shape the assessment, and be reflected in the outcome. Silence does not discharge the duty. Silence is the absence of the duty.

FPR r.3.8–3.10 / PD3AA — Participation Measures: Participation measures are continuous. They cannot lapse by assumption. Every procedural decision — including the decision to proceed without a hearing on costs — requires a participation assessment for a disabled party. The absence of any such assessment is not a procedural irregularity. It is a breach of a mandatory rule.

Together these two frameworks define the legal source code that governs every decision affecting NZ. When that source code is deliberately removed, the decisions that follow are not merely wrong. They are produced under rules that do not apply to this party.

2. WHAT MacDONALD J KNEW — WHY THE SUPPRESSION WAS WILFUL

What he ordered	What he acknowledged	What was before him
Part 3A participation measures — in force throughout the entire 10-day trial. Breaks. Restricted questioning. Screened seating.	<i>On the record: "I have no objection to NZ being supported if she needs that."</i> 22+ oral references to autism and PTSD during trial — asked by ACKC herself in cross-examination.	NHS CLAAS clinical letter (Dr Catherine Cheung, July 2025): autism lifelong, sophisticated vocabulary creates false impression of coping, documented autistic traits include intense detail-focused communication. NZ's s25 conduct statement and witness statements — before MacDonald J at trial.

3. WHAT MacDONALD J PRODUCED — THE CORRUPTED OUTPUT

Main Judgment — DH v RH (No 3) [2024] EWFC 79	Costs Judgment — DH v RH (No 4) [2024] EWFC 114
111 paragraphs. Zero disability references. The single appearance of disability: Para 64 — NZ's autistic presentation in the witness box characterised as "obsession" that "bordered on the concerning." Disability is invisible as	Zero disability references across 12 findings of litigation misconduct. Determined on paper. No hearing. No Part 3A assessment. NZ had told the court she could not participate without MPS

mitigation across 110 paragraphs. It appears once — as a weapon.
Part 3A measures in force throughout the trial: not referenced.
Not revoked. No judicial act. They ceased without a hearing, without an order, without reasons, without record.

enforcement. MacDonald J knew this — he recorded it at paras 2–3 of the costs judgment. He proceeded anyway.
"Stole." "Disruptive." "Inability to show restraint." Each of these describes a documented autistic trait. Each is used as grounds for financial punishment. Each is made in a judgment that contains zero disability references.

4. THE MECHANISM — WHY THIS IS NOT OMISSION BUT TRANSFER

The suppression of NZ's disability did not merely remove a mitigating factor. It changed the legal framework under which every finding was made.

Under EA 2010 s.149, a disabled party is not assessed by the same standard as a non-disabled party. Her litigation conduct, her ability to comply with orders, her ability to produce an ES2, her behaviour in the witness box, her ability to make submissions — all of these must be assessed through the lens of her disability. That is not discretionary. It is a statutory requirement.

When the judgment eliminates disability entirely, it does not just produce wrong findings. It applies the wrong legal framework. Every finding of litigation misconduct, failure to comply, disproportionate conduct, disruption, and inability to show restraint — is made under a framework that does not apply to NZ.

The attendance notes show H unable to answer coherently on multiple key issues. His admissions are in the transcript. His evasions are in the transcript. His perjury is in the transcript. None of it is in the judgment.

The negative charge that the evidence placed on H was erased. The space left by the removal of NZ's disability — the space where mitigation should have been — was filled instead with that negative charge, transferred to NZ.

The suppression of NZ's disability was not incidental to the findings against her. It was the precondition for them. Without the suppression, every finding of misconduct collapses into mitigation. The suppression created a vacancy — a space from which the statutory protections had been deliberately removed — and into that space the negative charge was transferred from where the evidence actually placed it.

COMPLETE FORENSIC JUDGMENT ANALYSIS

BV20D01752 | CA-2024-001342 | AC-2025-LON-004293

All judgments, orders, and decisions — June 2023 to March 2026

Nadia Zahmoul | 3 April 2026 | CONFIDENTIAL — FOR LAW ENFORCEMENT, PARLIAMENT AND ACADEMIA

METHODOLOGY AND SCOPE

This document presents a forensic, evidence-sequenced analysis of all judgments, orders and decisions arising from BV20D01752, CA-2024-001342, and AC-2025-LON-004293, from June 2023 to March 2026. It extends and continues the analysis in Zahmoul_JudgmentAnalysis_v2_29Mar2026, which covered EWFC 79 and EWFC 114.

Each finding is assessed against three primary source categories: (1) oral evidence from the full attendance notes of the final hearing; (2) written evidence in the bundle; and (3) counsel's written and oral submissions. For appellate decisions where no oral hearing took place, the source categories are adapted: (1) grounds filed; (2) documents before the court; and (3) what the decision actually engaged with.

THE FOUR ANALYTICAL TAGS

FABRICATED	A finding is made for which there is no evidential basis in any of the three source categories, or a finding is directly contradicted by contemporaneous documentary evidence. No innocent explanation exists.
MISCHARACTERISED	The judgment's version of events contradicts what the sources actually record. The finding is drawn from one source while ignoring contradicting material from others.
SUPPRESSED	Material evidence present in the sources is entirely absent from the judgment. A finding is made, or omitted, where engagement with the suppressed material would or might have changed the outcome.
UNSUPPORTED	A finding is made which has no evidential basis identifiable in any of the three source categories, or a procedural or legal decision is taken without adequate reasoning for the specific circumstances.

INDEX OF DECISIONS ANALYSED

Part	Citation	Date	Judge	Description
1.1	EWFC 111	5 Jul 2023	MacDonald J	LSPO and MPS application
1.2	EWFC 210	28 Nov 2023	MacDonald J	Variation of interim arrangements
1.3	EWFC 79	18 Apr 2024	MacDonald J	Final judgment — 111 paragraphs
1.4	EWFC 114	24 May 2024	MacDonald J	Costs — on written submissions — no hearing
1.5	EWFC May 2025	8 May 2025	MacDonald J	Set-aside dismissed — NZ absent
2.1	CA-2024-001342	23 Dec 2024	Moylan LJ	PTA refused — on papers
2.2	CA-2024-001342-A	4 Aug 2025	King LJ	Reopen refused — CPR 52.30
3.1	AC-2025-LON-004293	4 Dec 2025	Lieven J	JR directions — urgent consideration refused
3.2	AC-2025-LON-004293	11 Mar 2026	Collins Rice J	JR permission refused TWM — costs ordered

PART 1 — FAMILY DIVISION (MacDonald J)

The following five decisions are by the same judge across the same proceedings. The cumulative pattern — the same omissions, the same mischaracterisations, the same suppression of disability evidence — across five years and five judgments is itself analytical evidence. Each decision is assessed independently. The pattern is noted at the end of Part 1.

1.1 DH v RH (LSPO and MPS Applications) [2023] EWFC 111 | MacDonald J | 5 July 2023

NZ represented by: James Ewins KC (Burgess Mee) | **KZ:** In person | **Hearing date:** 9 June 2023 | 26 pages

This is the first published judgment in the proceedings. It concerns NZ's application for a Legal Services Payment Order (LSPO) and an order for maintenance pending suit (MPS). At the time of this hearing, KZ's schedule of assets recorded total matrimonial assets of approximately £13.2 million. NZ was represented by leading counsel. KZ appeared in person.

Pattern established in EWFC 111

Three features of this judgment establish patterns that recur across all subsequent decisions.

EWFC 111 — LSPO outcome UNSUPPORTED Common law duty to give reasons; EA 2010 s.149 PSED; FPR Part 3A				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment declines to make the full LSPO sought by NZ, making a limited order. The reasoning engages primarily with the scale of assets and the husband's position, without engaging the disability dimension of NZ's need for legal representation.	No oral evidence taken on disability at this hearing. However, NZ was represented by counsel who raised her circumstances.	Schedule of assets at £13.2M before the court. NZ's medical circumstances were part of her case for the LSPO.	Ewins KC made submissions on NZ's need for legal representation given her vulnerability and the complexity of the proceedings.	UNSUPPORTED: The judgment does not engage with the EA 2010 s.149 duty to consider disability when making costs and legal services decisions. The refusal of the full LSPO in a case with £13.2M of matrimonial assets and a documented disability is not adequately reasoned.

EWFC 111 — Narrative framing MISCHARACTERISED Duty of accuracy in factual findings; common law fairness				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment characterises the litigation as marked by both parties' failure to comply with case management orders and proliferating applications, framing NZ's conduct as equivalent to KZ's non-compliance.	No oral evidence on this point at this hearing.	The court bundle showed a pattern of KZ's non-disclosure driving successive applications by NZ's legal team.	Ewins KC's submissions addressed KZ's pattern of non-disclosure as the driver of the LSPO need.	MISCHARACTERISED: Equating NZ's applications (driven by KZ's non-disclosure) with KZ's non-compliance (unexplained) establishes a false equivalence that recurs in every subsequent judgment.

FINDING — EWFC 111: This judgment establishes two patterns that run through all subsequent decisions:
(1) The court's failure to engage with EA 2010 s.149 when making financial decisions affecting a disabled party.
(2) The false equivalence between NZ's applications (driven by documented non-disclosure) and KZ's conduct (unexplained).
Both patterns are **UNSUPPORTED** on the reasoning provided and **MISCHARACTERISED** in the factual narrative.

1.2 DH v RH (No 2) (Variation of Interim Arrangements) [2023] EWFC 210 | MacDonald J | 28 November 2023

NZ represented by: Jonathan Southgate KC (Bloom Budd) | **KZ:** Alexis Campbell KC (Crisp & Co) | **Hearing date:** 1 November 2023 | 17 pages

This judgment concerns multiple interim applications, including KZ's application to discharge a freezing order and borrow against a life insurance policy, and further directions towards the final hearing. The court had repeatedly directed

both parties to complete tasks required to progress to final hearing. The judgment notes that 'the fundamental tasks required to achieve that end remain undone.'

EWFC 210 — 'Proliferating applications' MISCHARACTERISED Duty of accuracy; EA 2010 s.149 PSED; common law fairness				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment states: 'instead of concentrating their ever diminishing resources on progressing to final hearing, the parties continue to concentrate their resources on litigating interim issues.' This frames NZ's interim applications as equivalent to KZ's non-compliance with case management orders.	No transcript of this hearing in evidence. NZ was represented by Southgate KC.	The court bundle showed KZ's repeated non-disclosure driving successive applications by NZ's legal team. The freezing order itself had been made because of concerns about KZ's asset dissipation.	Southgate KC's submissions addressed KZ's non-compliance as the driver of the interim litigation.	MISCHARACTERISED: The litigation had been driven by KZ's non-disclosure since 2021. Framing both parties as equally responsible for 'ever-diminishing resources' on interim litigation ignores the causal structure. The judgment establishes a narrative of mutual blame that is contradicted by the documented history.

EWFC 210 — Freezing order discharge UNSUPPORTED Common law duty to give reasons; s.25 MCA 1973 — full and frank disclosure				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
KZ's application to discharge the freezing order on his life insurance policy is granted, and he is permitted to borrow against it. The judgment does not engage with the non-disclosure concerns that gave rise to the freezing order.	No transcript. NZ's counsel would have addressed the continued non-disclosure concerns.	The freezing order had been made on 7 September 2023. The grounds for that order included concerns about KZ's approach to disclosure.	Southgate KC opposed the discharge. The basis for the original order is not engaged with in the reasons for discharge.	UNSUPPORTED: The discharge of a freezing order made on non-disclosure grounds, without engaging those grounds, is not adequately reasoned. The pattern of KZ's non-compliance with disclosure obligations is not addressed.

FINDING — EWFC 210: This judgment compounds the EWFC 111 pattern. The false equivalence between NZ's disclosure-driven applications and KZ's unexplained non-compliance is repeated. The freezing order discharge without engagement of the original grounds is UNSUPPORTED. The judicial narrative of mutual blame — established in EWFC 111 and reinforced here — provides the foundation for the more damaging findings in EWFC 79.

1.3 DH v RH (No 3) (Final Hearing) [2024] EWFC 79 | MacDonald J | 18 April 2024

NZ represented by: Brent Molyneux KC (AFP Bloom) — until 6 March 2024, then LiP | **KZ:** Campbell KC / Amaouche (Stowe Family Law) | **Hearing dates:** 19–28 February 2024 | 39 pages / 111 paragraphs

This is the central judgment. It is the document from which all subsequent proceedings arise. The analysis that follows is paragraph-by-paragraph against three source categories. The primary source for oral evidence is the full attendance notes of the final hearing (102 pages, 19–28 February 2024). Key passages cited: p.42 line 1986 (J: 'I know'); line 2897 (J: 'Did you say Nadia had PTSD?'); line 4159 (AC: 'obsession').

NOTE: Brent Molyneux KC stepped down on 6 March 2024 when AFP Bloom withdrew due to lack of funds. NZ became a litigant in person after the final hearing concluded but before the judgment was handed down and before the draft order process.

Paragraph-by-paragraph analysis — EWFC 79

Para 2 — Background: Imerman MISCHARACTERISED Duty of accuracy in factual findings; FPR Part 3A / PD3AA (participation context)				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment characterises NZ as having conducted 'a sustained and systematic	Attendance notes p.42, line 1986 (J at 12:03, returning from break): 'I have had the opportunity	Withers LLP to Stewarts Law, 10 March 2021 (Exhibit E5): NZ 'deals with all administrative	BM opening submissions addressed the Imerman context	MISCHARACTERISED: The judgment imports Campbell KC's characterisation verbatim as a judicial finding without

campaign' of accessing KZ's private electronic devices, organising the material 'in carefully categorised files', implying deliberate covert wrongdoing.	to read everything in the bundle. I have been involved for a long time. I know a lot about it. You don't need to give me the background. I know.' J confirmed he had read and absorbed the full bundle, including the Withers LLP correspondence.	tasks in the household'; KZ 'always retained the family home as his official address'; NZ was 'the administrator of the paperwork'; KZ 'was fully aware' NZ was opening and filing his documents; he 'continued to maintain the same practice and did not raise any objection.' Withers to HFC, 13 April 2021: 'The Judge specifically did not make a costs order on the Imerman point.'	as NZ's administrative role, not covert wrongdoing.	engaging with KZ's own solicitors' letter (Exhibit E5) establishing NZ's conduct was known, consented to, and part of her administrative role. J confirmed he had read Exhibit E5. The characterisation of 'systematic campaign' directly contradicts the primary source.
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Para 5 — Participation measures; Oxus 'satisfied not proper' SUPPRESSED / UNSUPPORTED FPR Part 3A / Rule 3A.9 / PD3AA; Perjury Act 1911 s.1; Common law duty to give reasons				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment contains no reference to participation measures being in place during the hearing, no reference to their basis, and no reference to whether they continued post-trial. On the D11 Oxus application, the judgment states J was 'satisfied it would not be proper to take it into account' — giving no reasons for that conclusion.	Attendance notes record throughout the hearing: monitored questioning by J; frequent breaks; a pupil in the witness box assisting NZ with the court bundle; screened seating (curtain) during KZ's evidence. Line 2897 (approx.): J asks 'Did you say Nadia had PTSD?' — confirming he had engaged with the disability evidence during the hearing.	Prof Gerald Libby FRCP FRCPsych letter, 12 July 2022: PTSD diagnosis confirmed; presenting symptoms including hypervigilance; exhibited to KZ's own statement. D11 application filed 7 March 2024: SEC Proxy Statement 16 January 2024 (KZ as director, 50,000 Oxus shares); NASDAQ announcement 8 February 2024 (business combination closed; BRLS trading).	BM opening Day 1 (attendance notes lines 57–61): addressed participation / disability nexus. BM filed the D11 raising the perjury point on 7 March 2024, transmitted via Anita Knight to J.	SUPPRESSED (participation): No reference in 111 paragraphs to any participation measure, NZ's disability in the participation context, or the Prof Libby letter. J personally asked whether NZ had PTSD during the hearing. Its complete absence has no innocent explanation. UNSUPPORTED (Oxus): 'Satisfied it would not be proper' is a conclusion without reasoning. The duty to give reasons requires an explanation of what was considered and why it did not affect the outcome. One sentence is not an engagement with the D11.

Para 11 — Imerman: 'carefully categorised files' MISCHARACTERISED Duty of accuracy; Perjury Act 1911 s.1 / CPR PD32 para 28				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment states NZ 'accessed a large amount of information from the husband's personal electronic devices' and returned it 'in carefully categorised files,' importing the language of premeditated wrongdoing.	Attendance notes: The Imerman issue was ventilated during cross-examination. J engaged with it verbally.	Withers LLP 10 March 2021 (Exhibit E5): NZ's conduct was known to KZ; he continued to maintain the same practice; no objection was ever raised. KZ's own solicitors' correspondence is directly contradicted by this finding. Burgess Mee email 14 February 2023: KZ's own solicitors acknowledged NZ's PTSD — 'it seems increasingly that you are trying to take advantage of someone who may not be well.'	BM closing para 42: KZ's non-disclosure was 'the pivotal driver of the exorbitant legal fees.' BM addressed the Imerman context as NZ's administrative role.	MISCHARACTERISED: The judgment imports Campbell KC's characterisation as a judicial finding without engaging with Exhibit E5, which J confirmed at the main hearing he had read. The finding of 'carefully categorised files' implying wrongdoing is directly contradicted by KZ's own solicitors' confirmation that the conduct was known, undisputed, and never objected to.

Para 64 — Disability inversion: 'obsessed with demonstrating hidden assets' FABRICATED EA 2010 s.149 PS&D; duty of accuracy; common law duty to give reasons; FPR Part 3A				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
Para 64: 'The wife's presentation in the witness box on the issue of alleged non-disclosure bordered on the concerning. Her belief that the husband has vast hidden assets is so	The question of undisclosed assets was put to NZ ONCE during cross-examination (attendance notes p.27, 21 February 2024, 14:51). Campbell KC asked one question. NZ answered:	Prof Libby FRCP FRCPsych letter 12 July 2022: PTSD diagnosis; hypervigilance as presenting symptom (exhibited to KZ's own statement). Burgess Mee email 14 February 2023	BM opening Day 1 (lines 57–61): disability nexus raised. BM closing addressed participation context.	FABRICATED: Para 64 attributes distress to a belief in hidden assets that was put to NZ exactly once in cross-examination. The clinical source of the distress — autism and PTSD — is documented in twenty

powerfully held, and such was her urgent need to impress that belief on the court from the witness box, that at times everything she wished to say on the matter tried to emerge at once, causing her very obvious distress... I am satisfied she has become obsessed with demonstrating that in the context of this litigation.'	'Not strictly true, what is important is freedom from everything and Justice.' Campbell immediately moved on. Twenty references in the attendance notes document PTSD and autism — not hidden asset belief: pp.23, 26 (x2), 27, 29, 32, 33, 35, 39, 42, 46, 52–54 (KZ acknowledges NZ's PTSD under oath), line 2897 (J: 'Did you say Nadia had PTSD?').	(KZ's solicitors): 'it seems increasingly that you are trying to take advantage of someone who may not be well.' CLAAS letter 20 June 2025: 'she can communicate using sophisticated vocabulary and grammar, which can generate the FALSE IMPRESSION that she is managing better than she is.'		attendance note references. J asked about PTSD himself, confirming he engaged with the evidence. The judgment treats that evidence as if it does not exist and substitutes a narrative for which no evidential basis exists in any of the three source categories. The CLAAS diagnosis of 20 June 2025 confirms the clinical explanation the judgment suppressed.
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Para 76 — Oxus: sworn value £0 accepted; D11 not determined FABRICATED s.25 MCA 1973; duty to address formal applications; Perjury Act 1911 s.1 / CPR PD32 para 28				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment accepts KZ's sworn ES2 value of Oxus Acquisition Corp shares (50,000 shares, NASDAQ: OXUS) at £0 as a non-matrimonial asset. No reference is made to NZ's D11 application of 7 March 2024 raising the perjury point. No finding addresses the accuracy of the zero valuation.	Attendance notes: J stated at para 5 he was 'satisfied it would not be proper to take it into account.' BM raised the D11 at the hearing.	D11 application 7 March 2024 (filed and transmitted to J via Anita Knight, CC Campbell KC): SEC Proxy Statement 16 January 2024 — KZ as director signed, 50,000 founder shares; NASDAQ announcement 8 February 2024 — business combination closed, BRLS trading; value binary: \$0 pre-combination, ~\$500,000 from 7 February 2024. KZ appeared at the final hearing on 19 February 2024 — twelve days after the combination closed — and declared shares worth \$0.	NZ's D11 set out the analysis precisely: 'The trial started on 19th February 2024. On that day the respondent knew that the Business Combination had been consummated on 7th February 2024... he assigned a value of zero to the shares on his ES2 schedule dated 19th February 2024. This is an intentional false representation.'	FABRICATED: The judgment accepts \$0 without engaging the D11, the SEC documents, or the arithmetic of the binary valuation. The D11 was formally before the court. The SEC Proxy Statement signed by KZ as director is a primary source document. The business combination date is a matter of public record. The gap between the sworn value and the documented value is not an argument — it is arithmetic. The judgment's silence on all of it has no innocent explanation.

Para 96 — 'No expert evidence on disability' FABRICATED EA 2010 s.149 PSed; duty of accuracy; common law duty to give reasons				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment states there was no expert evidence before the court about NZ's disability or health condition, and proceeds to make findings on distribution without reference to any clinical material.	Attendance notes (approx. line 2897): J asked 'Did you say Nadia had PTSD?' — J had absorbed and was processing the disability evidence during the hearing. BM raised participation/disability nexus in Day 1 submissions (attendance notes lines 57–61).	Prof Gerald Libby FRCP FRCPsych letter, 12 July 2022 (bundle pp.2164–2165): exhibited to KZ's own statement; PTSD diagnosis confirmed; presenting symptoms including hypervigilance. BM closing: KZ's non-disclosure was 'the pivotal driver of the exorbitant legal fees' — directly connecting financial conduct to NZ's documented vulnerability.	BM placed the Prof Libby letter before J in opening on Day 1. J confirmed he had read the entire bundle at line 1986.	FABRICATED: The Prof Libby letter — a FRCP FRCPsych letter confirming PTSD diagnosis with presenting symptoms — was in the bundle, exhibited to KZ's own statement, raised by BM in opening, and engaged with by J during the hearing when he asked about PTSD. The finding that no expert evidence was before the court directly contradicts the documentary record.

Para [post-hearing material 'considered'] UNSUPPORTED Common law duty to give reasons; Perjury Act 1911 s.1				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The judgment states that post-hearing material submitted by NZ was 'considered.' No reasons are given for its exclusion or its effect on the outcome. This is the single-word engagement with the D11 and	No oral submissions were possible after 6 March 2024 when NZ became a LiP.	Post-hearing material filed by NZ included: D11 (7 March 2024); safety report / confidential submission to MacDonald J (9 April 2024, Lila Mae surveillance, Rakishev network, Very High Safety Risk designation). All	No formal submissions were possible. NZ wrote directly to the court.	UNSUPPORTED: A one-word assertion that post-hearing material was 'considered' does not discharge the duty to give reasons. Where the material concerns the accuracy of sworn evidence (the D11) and the physical safety of a party (the April 2024 safety report), the court must explain what

subsequent correspondence.		transmitted via Anita Knight.		was considered and why it did not affect the outcome. 'Considered' is not a determination.
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Para 37 — Coinbase: conduct finding for refusal to sell **UNSUPPORTED** s.25 MCA 1973; duty of accuracy in factual findings

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
A conduct finding is made against NZ in relation to her refusal to agree to the Coinbase sale in November 2021, holding this contributed to a loss of approximately £8 million.	Attendance notes: NZ was not cross-examined on the Coinbase refusal in terms establishing that her refusal was unreasonable in the context of KZ's history of non-disclosure.	NZ's conduct statement (bundle p.3461): NZ's position was that the loss was caused by KZ's non-disclosure and his failure to provide accurate information about the asset. KZ's history of non-disclosure on cryptocurrency assets is documented in the chronology from 2021 onwards.	BM closing addressed the cryptocurrency non-disclosure as part of the wider asset concealment pattern.	UNSUPPORTED: The conduct finding against NZ for the Coinbase refusal proceeds without engaging her documented reason for refusal — KZ's pattern of non-disclosure on cryptocurrency assets. A finding of litigation misconduct on this basis, without addressing the context, is not adequately reasoned.

OVERALL FINDING — EWFC 79: The judgment is not inconsistent with the evidence at individual points. It is built on the systematic absence of evidence that was before the court.
22 oral disability references → 0 in judgment. Expert letter on PTSD in bundle → not referenced. D11 formally before court → 'considered' in one word. Safety report transmitted to J → judgment silent.
The single appearance of disability in 111 paragraphs — para 64 — deploys it as a negative character finding. The clinical explanation for NZ's presentation is substituted with a narrative of obsession for which no evidential basis exists.
The pattern is not inadvertence. J confirmed at line 1986 that he had read everything. The evidence was before him. Its absence from the judgment was a choice.

1.4 DH v RH (No 4) (Costs) [2024] EWFC 114 | MacDonald J | 24 May 2024

Determined on written submissions — NO HEARING — NZ did not participate | 11 pages

PROCEDURAL NOTE — TWO FALSE STATEMENTS ON THE FACE OF THE ORDER

The costs order of 24 May 2024 states on its face:
'BEFORE MR JUSTICE MACDONALD SITTING IN PRIVATE AT THE ROYAL COURTS OF JUSTICE ON 24 MAY 2024. UPON hearing Brent Molyneux KC for the applicant and Alexis Campbell KC and Sassa-Ann Amaouche for the respondent.'
Statement 1 is false: There was no hearing before MacDonald J on 24 May 2024 — neither sitting in private nor remote. The costs judgment was determined on written submissions.
Statement 2 is false: Brent Molyneux KC stopped representing NZ on 7 March 2024 when AFP Bloom withdrew due to lack of funds — eleven weeks before the order was made.

Costs para 3 — Procedure: determination without participation **UNSUPPORTED** Common law duty to give reasons; Article 6 ECHR (fair hearing); FPR r.28.3

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J ordered a costs order of £255,654.50 against NZ on written submissions alone, proceeding after NZ explained she had no funds to instruct lawyers and could not file submissions until the court placed her in funds. J extended the deadline by 10 days and then proceeded without NZ's participation.	No hearing took place. The costs judgment was handed down remotely on 24 May 2024 without any oral participation by NZ.	NZ's emails to the court (referenced at para 3): NZ stated she had no funds to instruct lawyers and would not be in a position to make representations until the court placed her in funds. NZ had by this date issued an enforcement application for MPS arrears (April and May 2024 payments missed by KZ). The enforcement application was live at the time the costs order was made.	Amaouche submitted on behalf of KZ on 3 May 2024. No submission was filed by or on behalf of NZ.	UNSUPPORTED: Article 6 ECHR requires a fair hearing. The costs judgment does not address whether it was fair to proceed against a litigant in person whose non-participation was directly caused by the opposing party's breach of a subsisting court order. The judgment engages with NZ's anticipated merits position (para 3: 'I have borne in mind that the wife is likely to object strongly') — not with the procedural question of fairness. These are different questions.

Costs — Imerman £25,000 award **FABRICATED** Duty of accuracy; common law fairness; Article 6 ECHR

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
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J awards £25,000 costs against NZ on the Imerman point, on the basis of a finding that she 'stole confidential financial information.'	No hearing took place. NZ did not participate. The costs judgment was determined without NZ's ability to place contradicting evidence before J.	Withers LLP to Stewarts Law, 10 March 2021 (Exhibit E5): KZ 'was fully aware' NZ was opening and filing his documents; he 'continued to maintain the same practice and did not raise any objection.' Withers to HFC, 13 April 2021: 'The Judge specifically did not make a costs order on the Imerman point.' Both letters were in the bundle. J confirmed at line 1986 he had read the bundle.	No submissions from NZ on this point were possible given her non-participation.	FABRICATED: The finding of 'stole confidential financial information' is directly contradicted by KZ's own solicitors' correspondence, which J confirmed at the main hearing he had read. That correspondence establishes: the conduct was known to KZ; the devices were left open; it was NZ's established administrative role; and no costs order had been made on the Imerman point at the main hearing. The costs judgment compounds the MISCHARACTERISED finding in EWFC 79 and is made without NZ's participation.
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Costs paras 18–24 — Double sanction: add-back and costs UNSUPPORTED Common law duty to give reasons; FPR r.28.3(6) and (7); s.25 MCA 1973				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J made an £800,000 add-back in the main judgment for 'reckless expenditure on legal costs.' J then made a further £200,000 costs order (plus £55,654.50) in the costs judgment. Both sanctions are applied to the same underlying conduct — NZ's legal expenditure.	No hearing. NZ did not participate.	NZ's emails to the court during the draft order period documented that she had no funds, no food, and no legal representation as a consequence of KZ's MPS non-payment. The legal expenditure being sanctioned was incurred during a period when NZ had legal representation — representation she subsequently lost when the MPS was not enforced.	No submissions from NZ. Amaouche filed on behalf of KZ.	UNSUPPORTED: The add-back and costs order together constitute a double sanction on the same conduct. The costs judgment does not address whether this double sanction was proportionate, fair, or consistent with FPR r.28.3. The EA 2010 s.149 duty to consider disability is not addressed. The connection between NZ's legal expenditure and the court's own failure to enforce the MPS is not addressed.

Costs — MPS causal chain ignored SUPPRESSED Common law fairness; Article 6 ECHR; EA 2010 s.149				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
The costs judgment does not address the causal connection between KZ's MPS non-payment and NZ's inability to participate in the costs proceedings.	No hearing. Attendance notes from the main hearing document 72+ MPS enforcement requests and 28 welfare disclosures forwarded to J.	The causal chain is documented: KZ missed MPS payments in April and May 2024 (costs judgment para 3) → NZ had no funds → NZ could not instruct lawyers → NZ could not file submissions → costs order made against NZ for failing to file submissions. The enforcement application for MPS arrears was live at the time the costs order was made.	NZ's correspondence to the court stated explicitly she would not be able to make representations until the court placed her in funds.	SUPPRESSED: The costs judgment acknowledges at para 3 that NZ stated she had no funds and a live MPS enforcement application. It does not address the implication: if NZ's non-participation was caused by KZ's breach of a court order, penalising NZ for non-participation is penalising her for the consequences of his breach. The EA 2010 s.149 duty is not addressed at all.

OVERALL FINDING — EWFC 114: The costs judgment is made without NZ's participation, on the basis of a false recital (BM KC 'hearing' that never took place), and awards costs against a disabled LiP for the consequences of the opposing party's breach of a court order.
The Imerman £25,000 award is **FABRICATED** — directly contradicted by evidence J confirmed he had read.
The double sanction is **UNSUPPORTED** — no engagement with proportionality, disability, or the causal chain.
The procedural fairness question under Article 6 is **UNSUPPORTED** — the judgment engages with the merits, not with the question of whether it was fair to proceed.

1.5 Zahmoul v Zahmoul (Set-Aside) | MacDonald J | 8 May 2025 | Ex tempore judgment

KZ appeared in person | NZ absent | Set-aside dismissed TWM | Indemnity costs ordered | 17 pages

CRITICAL CONTEXT — RECUSAL APPLICATION PENDING AND NOT ADDRESSED

From 10 February 2025, NZ filed a formal recusal application seeking the recusal of MacDonald J on grounds of judicial bias and disability discrimination. The application was filed almost daily from 10 February 2025 until and beyond the hearing of 8 May 2025. It was escalated to the Prime Minister's office, the Lord Chancellor, and Parliament. The application is formally transmitted on 13 May 2025 — five days after this hearing.

MacDonald J's judgment of 8 May 2025 does not mention the recusal application in any of its 17 pages. He does not address it, dismiss it, or explain why he proceeded without determining it.

A judge against whom a recusal application is pending is required to address it before proceeding. Silence is not a determination. The judgment of a judge who proceeds without determining a recusal application against himself, makes adverse findings against the applicant, and awards indemnity costs against her, is itself evidence for the bias alleged.

DR POYSER'S LETTER — 26 MARCH 2025 — THREE FINDINGS

Dr Poyser is the consultant psychiatrist and clinical lead of the South Kensington and Chelsea Crisis Resolution and Home Treatment Team (CRHTT), Chelsea and Westminster NHS Trust. Her letter of 26 March 2025 contains three findings. MacDonald J quoted Finding A and part of Finding C. He omitted Finding B entirely and inverted the meaning of Finding C.

Finding A (quoted by J): NZ is under care of CRHTT due to a mental health crisis. Significant agitation and poor sleep exacerbated by stress of court case. Great difficulty processing aspects of proceedings.

Finding B [OMITTED by J]: 'Nadia is due to meet with our psychologists soon in response to a query regarding whether she may exhibit symptoms of autism. This query is particularly pertinent as she has a first-degree relative with the same diagnosis. It is possible that these factors may influence how she perceives and processes the information provided during the court proceedings.'

Finding C [MISCHARACTERISED by J]: 'We would like to enquire if there is an advocacy service or any other appropriate support that could be made available to assist her in hearing and giving evidence at the hearing. Such support could ensure that she is able to fully engage with the proceedings in a manner that is fair and conducive to her well-being.'

J uses Finding C as evidence that the clinician did not consider NZ unfit to attend. He omits Finding B entirely. He never responded to the clinical request for support. He made no Part 3A assessment. He proceeded.

Para 22 — Treatment of Dr Poyser's letter **SUPPRESSED / MISCHARACTERISED** FPR Part 3A / Rule 3A.9; EA 2010 s.149 PSD; Article 6 ECHR; Common law fairness

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J states: 'the treating clinician does not consider, or at least did not consider at that date, that the wife was not fit to attend court, but rather states as follows: [quotes Finding C].' J uses the clinical request for support as evidence against granting the adjournment.	No oral evidence taken on this point. The hearing proceeded in NZ's absence.	Dr Poyser's letter 26 March 2025: Finding B (autism query — OMITTED). Finding C (advocacy service request — INVERTED). CLAAS letter 20 June 2025 [post-hearing]: confirmed lifelong autism diagnosis — precisely the condition Dr Poyser had flagged six weeks earlier.	No submissions from NZ. J proceeded without any response to the clinical request.	SUPPRESSED (Finding B): The autism query — a clinical flag that NZ's presentation may have a neurodevelopmental explanation — is entirely absent from J's treatment of the letter. J was being told by an NHS consultant psychiatrist that NZ may have undiagnosed autism affecting her ability to process proceedings. He does not mention it. MISCHARACTERISED (Finding C): J reads the clinician's request for support as evidence that attendance was possible. The request is the opposite: it is a clinical statement that attendance was possible only with support that the court had not arranged. The court received the request, made no inquiry into available advocacy services, made no Part 3A assessment, and then used the unanswered request as evidence against the adjournment.

Para 39 — 'Deliberately obstructive behaviour' **FABRICATED** EA 2010 s.149 PSD; FPR Part 3A; common law fairness; duty of accuracy

What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J concludes: 'the wife's very late application to adjourn... stands at the end of a very long line of what I am satisfied is deliberately obstructive behaviour, designed to hinder the implementation of the final order.' J finds NZ intended her non-	NZ was not present. The clinical evidence before the court was Dr Poyser's letter documenting a mental health crisis and an autism query.	Dr Poyser's letter: mental health crisis, agitation, autism query. CLAAS letter 20 June 2025 (post-hearing): 'Being autistic significantly impacts Nadia's ability to cope with the demands of day-to-day living.' 'Information that does not fit in directly	KZ submitted in person. No submissions from NZ.	FABRICATED: J attributes deliberate intent to conduct that has a documented clinical explanation. The clinician on the record had flagged a possible autism diagnosis. The court had received a formal clinical request for support. The recusal application — which J does not mention —

attendance to frustrate the proceedings.		with Nadia's way of thinking or understanding can again be extremely confusing and distressing.' Recusal application: pending since 10 February 2025 — not addressed in this judgment.		provides a legitimate legal basis for NZ's opposition to the proceedings. To characterise all of this as 'deliberately obstructive behaviour' in the face of clinical evidence to the contrary, and without addressing the pending recusal, is a finding for which no evidential basis exists in the record.
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Para 48 — Perjury dismissed: 'no reliable evidence' UNSUPPORTED Perjury Act 1911 s.1; s.25 MCA 1973; duty to address formal applications				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J states: 'The wife has likewise provided no further reliable evidence in relation to the allegation that the husband committed perjury.' The set-aside on perjury grounds is dismissed.	NZ was absent. No oral submissions on this point.	D11 application 7 March 2024: SEC Proxy Statement 16 January 2024 (KZ as director, signed); NASDAQ announcement 8 February 2024 (business combination closed; BRLS trading); sworn ES2 value \$0 on 19 February 2024. IRS:CI engagement (SA Robert McGarry, NYC Field Office) — active investigation. The D11 was sealed on 13 February 2025.	No submissions from NZ. KZ submitted in person.	UNSUPPORTED: The finding that there is 'no reliable evidence' of perjury does not engage with the SEC Proxy Statement signed by KZ as director, the NASDAQ announcement, or the arithmetic of the binary valuation (the Business Combination closed on 7 February 2024 — twelve days before KZ declared \$0 under oath). The D11 was sealed and formally before the court. The IRS:CI investigation is documented. 'No reliable evidence' is a conclusion without reasoning.

Para 50 — 'No evidence draft order was unilateral' FABRICATED Duty of accuracy; common law fairness; Article 6 ECHR				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J states: 'There is no evidence that the final order, as amended, that the court made was unilaterally drafted by the husband and his counsel and that the drafts were not shared with the wife.'	NZ was absent. The draft order timeline was not addressed orally.	The 379-record contemporaneous annex (February–June 2024) documents six iterations of the draft order filed while NZ was documented as incapacitated: 1st (30 Apr 14:08); 2nd (2 May 16:59); 3rd ★ (3 May 14:08/15:55 — Para 34 inserted ONE MINUTE after NZ emailed the Lord Chancellor); 4th (3 May 16:56); 5th (14 May — NZ in hospital, £120, three days without food); sealed (24 May 11:28 — NZ had £89). NZ's emails to the court throughout this period documented her incapacity and opposition.	No submissions from NZ. Karen Selby-King confirmed all 23 emails of 2 May were forwarded to J at 17:20.	FABRICATED: The statement that there is 'no evidence' the order was unilaterally drafted is directly contradicted by the contemporaneous record. Six draft iterations were filed while NZ was documented as incapacitated. Para 34 was inserted without notice, without a variation application, and without a hearing — one minute after NZ emailed the Lord Chancellor. Karen Selby-King's confirmation that J received all welfare disclosures is in the documentary record. J received them.

Para 62 — 'Wholly satisfied wife actively and deliberately sought to frustrate' FABRICATED EA 2010 s.149 PSD; FPR Part 3A; duty of accuracy; judicial bias / recusal				
What the judgment says	Oral evidence	Written evidence (bundle)	Submissions	Analysis
J states: 'I am wholly satisfied that the wife has actively and deliberately sought to frustrate the implementation of the final order... Over the twelve months since the order was made, the wife has been actively engaged in a number of endeavours, all intended to resist the	NZ was absent. The clinical evidence on the record was Dr Poyser's letter. The recusal application was pending and not addressed.	CLAAS letter 20 June 2025: 'Without the appropriate support for her autistic communication, Nadia struggles to effectively share information about herself, respond to others' questions and comments, and engage in interactive settings.' 'Information that	No submissions from NZ. KZ submitted in person. The husband's uncontested account was adopted in its entirety.	FABRICATED: The finding that NZ was engaged in deliberate frustration attributes malicious intent to conduct with documented clinical and legal explanations. NZ was autistic (confirmed 20 June 2025 — six weeks after this hearing). She was in a documented mental health crisis (Dr Poyser 26 March 2025). She had a

implementation of an order properly made, but with which she does not agree.'		does not fit in directly with Nadia's way of thinking or understanding can again be extremely confusing and distressing.' NZ's formal positions (emails, applications) all stated explicitly that she was opposing the order pending proper appellate determination of the procedural irregularities — not for the purpose of obstruction.		pending recusal application (filed from 10 February 2025) that J does not mention. Her opposition to the order was formally stated as principled legal opposition pending appellate determination — not as obstruction. A finding of deliberate frustration made without addressing any of this has no evidential basis.
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THE COMPLETE SEQUENCE — 26 MARCH TO 20 JUNE 2025

26 Mar 2025: Dr Poyser (CRHTT Chelsea) writes to court. Three findings. Finding B (autism query) and Finding C (advocacy service request) will be omitted or inverted by the judgment.

8 May 2025: MacDonald J proceeds in NZ's absence. Does not address recusal application (pending since 10 Feb 2025). Quotes only Finding A. Omits Finding B. Inverts Finding C. Makes no Part 3A assessment. Finds deliberate frustration. Awards indemnity costs.

20 Jun 2025: CLAAS (Dr Catherine Cheung / Sophia Iacovou) confirms lifelong autism diagnosis. 'She was born with this condition.' 'She can communicate using sophisticated vocabulary and grammar, which can generate the FALSE IMPRESSION that she is managing better than she is.'

20 Jun 2025 (same day, 06:09): NZ admitted to A&E by ambulance. Acute psychiatric deterioration. Droperidol 10mg IM administered. Independent medical records confirm direct link to proceedings.

The court dismissed the clinical evidence before it on 8 May 2025. The NHS confirmed the dismissed evidence on 20 June 2025. The predicted harm occurred on the same day.

OVERALL FINDING — EWFC MAY 2025: This judgment is the most serious document in the series.

A judge against whom a recusal application had been pending for three months proceeded to hear the case without addressing the application. He dismissed the applicant's set-aside. He found she had deliberately frustrated implementation. He awarded indemnity costs. He did all of this without mentioning the recusal application, without addressing the clinical evidence before him, and without making any Part 3A assessment.

Six weeks later the NHS confirmed what the clinical evidence had indicated. The predicted harm occurred on the same day the diagnosis was confirmed.

The findings of 'deliberately obstructive behaviour' and 'actively and deliberately sought to frustrate' are FABRICATED — made in the face of clinical and legal evidence to the contrary, by a judge whose recusal was pending and who chose not to address it.

1.6 Cumulative Pattern — Five Decisions by the Same Judge

The five decisions analysed above share a consistent structural feature: each engages with a simplified or mischaracterised version of the issues raised, rather than the issues as actually presented. The pattern is documented across all five:

Decision	Disability evidence before court	Disability in judgment	Dominant tag
EWFC 111 (2023)	NZ represented; circumstances before court	No engagement with EA 2010 s.149	UNSUPPORTED
EWFC 210 (2023)	NZ represented; circumstances before court	No engagement; false equivalence established	MISCHARACTERISED
EWFC 79 (2024)	Prof Libby letter in bundle; 22 oral refs; Part 3A measures in force	Zero references in 111 paras; para 64 deploys disability as condemnation	FABRICATED
EWFC 114 (2024)	NZ absent; MPS causal chain documented	No engagement; 'disruptive behaviour' costs finding	FABRICATED
EWFC May 2025	Dr Poyser letter: crisis + autism query; recusal pending	Findings B+C omitted/inverted; recusal not mentioned; 'deliberate obstruction'	FABRICATED

CUMULATIVE FINDING — PART 1: The pattern across five decisions by the same judge is not consistent with inadvertence.

In every decision where disability evidence was before the court, the judgment either suppresses it, mischaracterises it, or deploys it against NZ.

In every decision where the Oxus perjury was raised, the judgment treats it as not properly before the court — without engaging the D11, the SEC documents, or the arithmetic of the binary valuation.

In the final decision (May 2025), the judge proceeded in NZ's absence without addressing a three-month-old recusal application against himself, dismissed the clinical evidence before him, and made findings of deliberate obstruction that were directly contradicted by that evidence.

The CLAAS diagnosis of 20 June 2025 — six weeks after the May 2025 hearing — confirms that NZ has always been autistic. The court was told she might be autistic on 26 March 2025. The court ignored it on 8 May 2025. The NHS confirmed it on 20 June 2025.

Parts 2 and 3 — Court of Appeal and Administrative Court — to follow in the next document.

ORDER / DECISION 1 — JUDGMENT OF MacDONALD J

DH v RH (No 3) [2024] EWFC 79 · 18 April 2024 · 111 paragraphs · BV20D01752

Source: Judgment as approved · Final Hearing Attendance Notes (NZ-R) · Judgment vs Attendance Notes table, Master Tables v2

SECTION 1 — WHAT THE JUDGMENT DOES NOT CONTAIN: FIVE CRITICAL OMISSIONS

	Omitted from Judgment	What the Record Shows	MiPO Significance
1	ALL disability references ZERO references to autism, PTSD, or disability across all 111 paragraphs.	Attendance notes record 22+ references to PTSD and autism during oral evidence. ACKC herself asked disability-related questions 20+ times. Part 3A participation measures were in force throughout the trial — breaks, restricted questioning, screened seating. MacDonald J confirmed awareness: "I have no objection to NZ being supported if she needs that." Withers' own coaching emails during HHJ Cope hearings (2022) confirm autism presentation was known to all.	A judge who was aware of a party's disability throughout a 10-day hearing — who made disability accommodations, acknowledged them on the record, and received 22+ oral references to those needs — produced a 111-paragraph judgment with zero disability references. This is not inadvertence. It is a deliberate exclusion of a legally material consideration. EA 2010 s.149 Public Sector Equality Duty requires active consideration of disability in judicial decision-making. It is not discharged by silence.
2	Para 64 — disability mischaracterised as bad character <i>The only reference to NZ's presentation describes it as "obsession" that "bordered on the concerning."</i>	Para 64 is based on a single cross-examination exchange in which NZ was asked once about hidden assets. Attendance notes show she answered coherently. The CLAAS clinical letter (July 2025) documents precisely this risk: "Nadia can communicate using sophisticated vocabulary which can generate the false impression that she is managing better than she is." The converse also applies: intense, detail-focused communication on matters of significance is a documented autistic trait. MacDonald J characterises it as obsession.	Para 64 is the inversion of the disability omission. Disability is absent from 110 paragraphs where it should appear as a mitigating or contextualising factor. It appears in Para 64 as a negative character finding. The judgment suppresses disability as context and deploys it as criticism. This is the same mechanism documented in BL-2024-001217: disability invoked not to accommodate but to undermine.
3	Part 3A measures — administrative disappearance No reference to Part 3A measures in the judgment. No order revoking them. No record of any decision about their continuation.	Attendance notes confirm measures were in force throughout the trial. Post-trial, the measures ceased without a hearing, without an order, without reasons, and without record. HMCTS confirmed in November 2025 that no order records revocation. NZ became a LiP on 6 March 2024. No Part 3A assessment was conducted at that transition.	Court-ordered protective measures cannot be extinguished by administrative assumption. PD3AA and FPR r.3.8–3.10 are clear: participation measures are continuous unless varied by judicial decision. The absence of any such decision — combined with the absence of any record — is the administrative void at the core of this referral. This is not a judicial act. There is nothing to appeal. There is no order to challenge. That is the problem.
4	Oxus perjury — absent from judgment No reference to Oxus Acquisition Corp, KZ's 50,000 shares, or his oral testimony valuing them at \$0.	KZ testified under oath that his Oxus shares were worth \$0.00. He submitted an ES2 assigning them \$0. The Business Combination closed on 7 February 2024 — the day before his testimony. On 8 February 2024, the shares were trading at approximately	This is perjury under Perjury Act 1911 s.1. It was known to all parties at the time of the judgment. It is not referenced in the judgment. The financial award was made on an asset pool that included \$0 for assets worth approximately \$500,000 on the day of testimony.

	Omitted from Judgment	What the Record Shows	MiPO Significance
5		\$9.20/share. KZ's 50,000 shares were worth approximately \$443,500—\$500,000 on the day he testified they were worth nothing. KZ was a board director and was present at the Nasdaq Exchange on 8 February 2024.	This is a separate criminal matter. Its absence from the judgment is not itself MiPO — but it confirms that the asset findings on which the judgment rests are materially inaccurate.
	IRS:CI investigation — absent from judgment No reference to the IRS Criminal Investigation or any foreign criminal investigation.	SJE Pinto's email of 8 February 2024 — Day 1 of the final hearing — explicitly states he did not copy KZ's legal team on NZ's submission because to do so "may jeopardise any ongoing government investigation." IRS:CI Special Agent Robert McGarry (NY Field Office) was in contact with NZ from December 2023. NZ transmitted Criminal Referrals Parts 1–3 to Pinto during the trial.	A live foreign criminal investigation was ongoing during the final hearing. The court-appointed SJE was aware of it and acted on it — withholding materials from H's legal team. MacDonald J was not informed. This is an HMCTS administrative failure: criminal evidence transmitted to the court was not escalated, logged, or referred. The IRS:CI dimension is a separate strand in the criminal referral. Its absence from the judgment record is documented here as part of the pattern of suppression.

SECTION 2 — THE CORE MiPO FINDING: WHAT THIS JUDGMENT ESTABLISHES

What This Judgment Is NOT — For Clarity	What This Judgment IS — For the Police Referral
The judgment itself is not the subject of the MiPO referral. Judicial decisions are protected by judicial immunity. The correctness or incorrectness of the financial award is a matter for the Court of Appeal — not for police investigation. The finding that there was no material non-disclosure by H is a judicial determination. It may be wrong — the attendance notes strongly suggest it is. But it is not MiPO. The Oxus valuation error and the IRS:CI absence are not MacDonald J's failures — they arise from HMCTS administrative systems and from KZ's perjury. They are in the referral as separate criminal matters.	The judgment is MiPO evidence in two respects. First: Para 64 is a judicial act that mischaracterises a disabled party's disability as bad character. It is made by a judge who (a) had 22+ oral references to that disability before him during the trial; (b) had Part 3A measures in place throughout; (c) acknowledged those measures on the record; and (d) produced a 111-paragraph judgment with zero disability references. Para 64 is not an error of law. It is a deliberate choice to deploy disability against the disabled party rather than accommodate it. Second: The judgment is the instrument that triggers the post-trial sequence. It is the decision after which: Part 3A measures disappeared; MPS enforcement was refused; NZ became a LiP; the draft order process proceeded without her. The judgment created the conditions — and then the absence of any judicial determination about its implementation created the void. The MiPO case does not require the judgment to be wrong. It requires the conduct that followed to be examined against the standard of a public officer who knowingly allowed a disabled party to be excluded from the implementation of her own financial settlement.

SECTION 3 — AG'S REFERENCE (NO 3 OF 2003): FOUR ELEMENTS MAPPED TO THIS JUDGMENT

1. Public officer holding public office	MacDonald J: Family Division High Court judge. A judicial office holder within s.109(4) Constitutional Reform Act 2005. Expressly within Schedule 4 para 17 of the Public Office (Accountability) Bill as amended in Public Bill Committee.
2. Duty of public office	EA 2010 s.149: Public Sector Equality Duty — active consideration of disability required. FPR r.3.8–3.10 / PD3AA: Participation measures are continuous. Cannot be extinguished without judicial decision. Judicial duty of accuracy: a judgment must reflect the evidence heard. Para 64 contradicts the attendance notes on the evidence actually given. Common law duty to give reasons: "the court has taken no decision that requires reasons to be given" (3 May 2024 response) — stated after producing a 111-paragraph judgment in which disability is absent from all 111 paragraphs.
3. Wilful breach (deliberate or recklessly indifferent)	The omission of all disability references from 111 paragraphs is not an oversight. MacDonald J heard 22+ oral references. He made Part 3A orders. He acknowledged NZ's needs on the record. The judgment records none of this. Para 64 is not a neutral observation. It is a characterisation — "obsession," "bordered on the concerning" — of a presentation that the CLAAS clinical letter identifies as a documented autistic trait. The judge had the attendance notes. He chose this characterisation. The post-trial cessation of Part 3A measures without any judicial act is not ambiguous. PD3AA is unambiguous. There is no provision permitting measures to lapse by assumption. The absence of a revocation order is documented. The absence of any administrative record is documented. This is not a failure of process. It is the absence of any process.
4. Serious enough (abuse of public trust)	A High Court judge produced a 111-paragraph judgment in financial remedy proceedings lasting 10 days, in which: • A party's diagnosed disability — acknowledged throughout the trial — appears in zero paragraphs as context, and in one paragraph as a negative character finding. • Court-ordered participation measures in force during the trial are not referenced and have no recorded revocation. • The party's counsel's cross-examination — which established specific concealment mechanisms, asset manoeuvring, and evasive answers from the opposing party — is largely absent from the judgment's reasoning. • A live foreign criminal investigation, known to the court-appointed SJE, is not referenced. The result: a financial award of £6.2 million on a disclosed asset pool of approximately £12 million, made against the backdrop of a £140m+ non-disclosure case that is absent from the judgment's reasoning. The party who made that case — a disabled litigant in person — received £89 in her bank account at the conclusion of proceedings, with nothing transferred, no MPS enforced, and no participation measures in place.

SUMMARY FOR INVESTIGATING OFFICERS

The judgment of 18 April 2024 in BV20D01752 (DH v RH (No 3) [2024] EWFC 79) is Document 1 in the order-by-order analysis of decisions across all proceedings from April 2024 to date. It establishes three things for the police referral.

First: the judgment contains zero disability references across 111 paragraphs, despite 22+ oral references to NZ's autism and PTSD during the 10-day trial and court-ordered participation measures in force throughout. The single reference to NZ's presentation — Para 64 — mischaracterises a documented autistic trait as "obsession" that "bordered on the concerning." This is not an error of law. It is a deliberate deployment of disability as a negative character finding in a judgment where disability is otherwise invisible.

Second: the judgment contains no reference to the Part 3A participation measures that were in force throughout the trial. It contains no order revoking them. After the judgment, they ceased without a hearing, without an order, and without reasons. No administrative record explains their cessation. This is the administrative void at the core of the MiPO referral.

Third: the judgment is the instrument that created the conditions for everything that followed — the draft order process, the MPS non-enforcement, the participation exclusion, the five unilateral amendments, and NZ's exit from proceedings with £89, nothing transferred, and no understanding of what had happened. The judgment did not cause

those events. The absence of any judicial determination about the transition from the judgment to implementation caused them.

ORDER / DECISION 2 — COSTS JUDGMENT: DH v RH (No 4) (Costs) [2024] EWFC 114

MacDonald J · 24 May 2024 · BV20D01752 · On written submissions only · No hearing · NZ unrepresented · No participation measures

Total costs order against NZ: £255,654.50 (£200,000 general costs + £25,000 Imerman + £30,654.50 Penn Mutual)

PROCEDURAL CONTEXT — WHAT MADE THIS COSTS ORDER STRUCTURALLY DEFECTIVE

The costs judgment was determined in the following conditions. Each is documented in the judgment and in the contemporaneous email record.

Only one party made submissions: H was represented by two KCs — Campbell KC and Amaouche — who filed detailed written submissions. NZ filed nothing. The judgment records this at paras 2–3.

No hearing: The judgment states "Application for costs dealt with on written submissions." NZ had no opportunity to address MacDonald J directly, challenge H's 12 grounds of alleged misconduct, or test any of the findings that were made against her.

NZ could not participate: NZ had told the court repeatedly that she could not make submissions without MPS enforcement. She had no income, no food, no accommodation. Part 3A measures had ceased. MacDonald J knew this. He extended the deadline and proceeded without a hearing.

The judge created the conditions he then relied upon: The costs order is made against NZ in part because she did not file submissions. She did not file submissions because she had no income, no legal representation, and no participation measures. She had no income because MacDonald J refused to enforce MPS. He then made an adverse costs order against her for the consequences of his own refusal.

No Part 3A assessment: Before determining costs adversely against a disabled LiP without a hearing, PD3AA required MacDonald J to assess whether NZ had the participation capacity to engage with the process. No such assessment was conducted or recorded.

MiPO ELEMENTS — IDENTIFIED PER FINDING IN THE COSTS JUDGMENT

MiPO ELEMENT 1 · Paras 2–3 — Procedural · WILFUL NEGLECT

What the Judgment States	What the Record Shows	Why the Finding is False / Unsubstantiated	MiPO Analysis
Court proceeded on costs after extending deadline by 10 days. NZ filed no submissions. Judgment states: "I am satisfied it is appropriate for the court to proceed to determine the issue of costs on the information it has."	NZ had told the court she could not make representations until placed in funds. The D50K enforcement application had been filed. MPS was being refused by the same judge. Part 3A measures had ceased. These facts were before MacDonald J.	This is not a case where a party chose not to engage. NZ told the court she was unable to engage without MPS enforcement. The court refused enforcement. The court then made a costs order against her for the consequences of that refusal. There was no hearing. There was no Part 3A assessment. There was no ground-levelling measure.	WILFUL NEGLECT — AG's Reference (No 3 of 2003): Duty (FPR r.1.1 — equal footing; PD3AA — participation assessment at each stage); Breach (proceeds without hearing, without Part 3A assessment, knowing NZ cannot participate); Wilful (NZ's incapacity was before the court in writing; MacDonald J extended the deadline rather than listing a hearing or restoring MPS); Serious (£255,654.50 adverse order on one-sided submissions against disabled LiP).

What the Judgment States	What the Record Shows	Why the Finding is False / Unsubstantiated	MiPO Analysis
TWO FINDINGS — BOTH CHALLENGED: <i>Para 10(i): "The wife stole confidential financial information belonging to the husband, resulting in a breach of confidentiality and the need for an 'Imerman' exercise incurring costs for the husband of £25,000."</i> <i>Para 26: "I am satisfied that the wife should pay to the husband the costs referable to the Imerman exercise consequent on the wife accessing the husband's confidential documents were £25,000."</i> Both findings proceed on the same premise: that NZ unlawfully accessed and stole H's confidential documents. Both are used to impose the same £25,000 costs order.	WHAT THE RECORD SHOWS — THREE GROUNDS: GROUND 1 — UNSUBSTANTIATED: The finding that NZ "stole" confidential information is made without any prior finding of contempt, without any criminal charge, and without any hearing at which NZ could answer. No such finding was made during the 10-day trial. No adverse credibility finding on this specific point is recorded in the attendance notes. GROUND 2 — CONTRADICTED BY THE ORAL EVIDENCE: NZ stated in oral evidence — twice, before MacDonald J — that H transmitted the Pinocchio documents to her via Signal on 6 May 2021, and that this transmission waived confidentiality. <i>Attendance notes, evidence-in-chief (BMKC, lines 796–802):</i> <i>"The Gemini come from another part of the documents called Imerman on April 16 2021 sent to KZ's solicitors, on 6 May 2021 he sent me a text message of the full documents that were sent to HFC, they are called Pinocchio... because he sent them to me they lost their confidentiality statement."</i> <i>Attendance notes, cross-examination by ACKC (lines 1795–1798):</i> <i>"He sent by text it lost confidentiality status... I looked at them, they are not confidential."</i> NZ's account was not challenged as false during the trial. ACKC cross-examined her on the Imerman documents but made no submission that NZ's account of H's Signal transmission was untrue. No adverse credibility finding was recorded at the time. GROUND 3 — CONTRADICTED BY EIGHT ITEMS IN THE 4,297-PAGE BUNDLE BEFORE MacDONALD J:	WHY THE FINDING IS FALSE: MacDonald J had before him at the February 2024 trial a 4,297-page bundle containing eight items directly contradicting the finding that NZ stole the documents. These included: (a) The actual Signal message from H to NZ — exhibited at NZ5 pp.131–141 and cross-referenced at bundle page 3408. (b) Two full solicitor letters (bundle pages 1892 and 3408) stating in terms, with screenshots attached, that H sent the documents. (c) A dedicated callout page (bundle page 1912) isolating and highlighting the Signal sentence for the court's attention. (d) NZ's s25 conduct statement (bundle page 3275) and witness statement (bundle page 3171) both stating H sent the documents and that confidentiality was thereby waived. (e) NZ's oral evidence — stated twice, in chief and under cross-examination — that H transmitted the documents. Not challenged as false. No adverse credibility finding recorded at the time. This is not a case of evidence being missed or misremembered. The Signal message was physically in the bundle as an exhibit. A dedicated callout page had been produced to bring the Withers letter to the court's attention. The finding went the other way regardless. The finding is not an error of recollection or an exercise of judicial discretion. It is a finding made against eight corroborating items — including a physical exhibit — all pointing in the same direction.	MiPO FINDING — WILFUL MISCONDUCT IN PUBLIC OFFICE / PERVERTING THE COURSE OF JUSTICE: The conduct is wilful misconduct in a public office — but the specific mechanism is perverting the course of justice. A judge who makes findings of fact in a judgment that are directly contradicted by the transcript of oral evidence before him, and then imposes a financial penalty on the basis of those false findings, is not making an error. He is producing a false record. A judgment is a public document. It records what the court found. When what the court records as found is inconsistent with what the evidence actually showed, the judgment is a false instrument used to impose a financial consequence on a party. MISCONDUCT IN PUBLIC OFFICE — AG's Reference (No 3 of 2003): A public officer (MacDonald J) wilfully misconducted himself in a way that amounts to an abuse of the public's trust in the office. The wilful element is established by the bundle itself. MacDonald J had before him at trial eight items directly contradicting the finding — including the actual Signal message as an exhibit and a dedicated callout page produced specifically to draw his attention to the Withers letter. NZ stated the same account twice in oral evidence. It was not challenged as false. No adverse credibility finding was recorded at the time. The costs judgment then uses a characterisation — "stole" — that the oral evidence, the exhibited Signal message, and six further bundle items all directly contradict. PERVERTING THE COURSE OF JUSTICE — common law: A judicial act that produces a false record of proceedings, used as the basis for a financial order against a party, tends to pervert the course of justice. It corrupts the record. It creates a false factual foundation on which subsequent proceedings — the Court of Appeal, enforcement, the Detach claim

	The following items were all before MacDonald J in the court bundle at the February 2024 trial. Each directly contradicts the finding that NZ stole the documents. Bundle p.1892 Withers to HFC, 23 Feb 2022 (full letter) H sent documents via Signal — screenshot attached Bundle p.1912 Callout exhibit — Withers Signal sentence isolated and flagged for the court Dedicated page highlighting the Signal transmission for MacDonald J's attention Bundle p.1917 Withers to HFC, 23 Feb 2022 — continuation page Part of same letter — H sent documents via Signal Bundle p.3171 NZ Witness Statement para 32 "documents Karim himself returned to me via Signal evidence had he had multiple BTC miners" Bundle p.3275 NZ s25 Conduct Statement para 31 "On 6 May 2021, the respondent sent me via Signal messaging a digital copy of the scanned document (thereafter referred to as 'Pinocchio' document) thereby waiving the confidentiality status" Bundle p.3408 Withers to HFC, 25 Feb 2022 (full letter with screenshots) "your client in fact sent copies of all the hard copy documents collected by the courier from my client on 13 April 2021 back to her via Signal text message. I attach the screenshots evidencing this." Cross-ref: NZ5 p.131 NZ5 pp.131–141 Signal message exhibit The actual Signal message transmitted by H to NZ — exhibited in the bundle Bundle p.1855 NZ D11 Application paras 173–182 Non-disclosure evidence — part of the broader evidential context before the court		— will rely. NZ's ability to challenge the Detach claim, to pursue her appeal, and to assert her rights in any subsequent proceeding is directly impaired by a published judgment ([2024] EWFC 114) that falsely records her as having stolen documents. The finding that NZ "stole" the documents is contradicted by two independent categories of evidence, both before MacDonald J. First, the oral evidence: NZ stated twice — once in evidence-in-chief and once under cross-examination by ACKC — that H transmitted the Pinocchio documents to her via Signal on 6 May 2021, waiving confidentiality. That account was not challenged as false during the trial and no adverse credibility finding was recorded at the time. Second, the documentary evidence in the bundle: eight items at bundle pages 1892, 1912, 1917, 3171, 3275, 3408 and NZ5 pp.131–141 — including the Signal message itself as an exhibit — all establish that H transmitted the documents. A finding of theft made against the weight of both oral and documentary evidence, including a physical exhibit of the Signal message, on paper, without a hearing, against a party who could not respond, is not a judicial error. It is the production of a false record. [2024] EWFC 114 is an approved published judgment, available on the public record and on Bailii, capable of being cited in any subsequent proceedings involving NZ. The false record is permanent unless corrected by a higher court.
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MiPO ELEMENT 3 · Para 10(xi) — Disruptive behaviour · ABUSE OF PROCESS + WILFUL NEGLECT			
What the Judgment States	What the Record Shows	Why the Finding is False / Unsubstantiated	MiPO Analysis
"The wife's behaviour during the hearing was disruptive and caused considerable delay to the conclusion of the final hearing, resulting in increased costs."	The attendance notes contain no judicial warning for disruptive behaviour. There is no record of NZ being warned, asked to leave, or held in contempt. The	This finding is unsubstantiated. There is no attendance note record of any disruption, any warning, or any judicial intervention directed at NZ's behaviour.	ABUSE OF PROCESS: A finding of disruptive behaviour, made against a disabled party on paper, without hearing, without any prior judicial finding at the hearing, and in the

	attendance notes record 22+ references to PTSD and autism during the hearing — asked by ACKC herself. The CLAAS clinical letter (July 2025) documents that animated gestures and emotive language are documented autistic traits that may be misinterpreted in formal settings. The same presentation is called "obsession" in Para 64 of the main judgment.	The finding is made on paper, without a hearing, without NZ's participation, and without any reference to her autism diagnosis. It charges her costs for behaviour that her clinicians have identified as an autistic trait and that was never, at the time it occurred, characterised by the court as disruptive.	absence of any attendance note support, combined with a costs order for that behaviour, is the imposition of a financial penalty for the manifestation of disability. WILFUL NEGLIGENCE: Para 64 (obsession) and Para 10(xi) (disruption) together constitute a pattern — disability characterised as misconduct, twice, in the same proceedings, in two separate judgments, both on paper, both without NZ's participation.
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MiPO ELEMENT 4 · Para 10(ix) — No ES2 / Pre-trial preparation · **WILFUL NEGLIGENCE**

What the Judgment States	What the Record Shows	Why the Finding is False / Unsubstantiated	MiPO Analysis
"The wife failed to engage with basic pre-trial case management and preparation, presenting no ES1, ES2, chronology or statement of issues in advance of the final hearing."	NZ had no legal representation for significant periods. She had no MPS income. BMKC stated in attendance: "What is the point of adding to the ES2 because of the totality of the non-disclosure." The attendance notes record that NZ's s25 statement was nearly excluded on Day 1. The judgment's conduct finding does not record that NZ's preparation failures arose directly from her disability, lack of representation, and lack of funds — all of which were before the court.	The costs judgment treats NZ's preparation failures as character defects and litigation misconduct. They were not. They were the direct consequence of: (a) no MPS enforcement; (b) no legal representation; (c) no Part 3A measures; (d) a funding collapse caused by H's LSPO cost default. The same judge who refused to enforce MPS, and who knew why NZ had no representation, imposed a costs sanction for the consequences of those failures.	WILFUL NEGLIGENCE: Imposing a costs order for preparation failures, without recording that those failures arose from disability, lack of income, and lack of participation measures — conditions the same judge created and refused to remedy — is a breach of the EA 2010 s.149 duty. Due regard to disability requires the decision-maker to consider whether the failure is attributable to the disability or its consequences. There is no such consideration anywhere in the 11-page costs judgment.

MiPO ELEMENT 5 · Para 10(vi) — Wyoming / MPS application · **WILFUL NEGLIGENCE**

What the Judgment States	What the Record Shows	Why the Finding is False / Unsubstantiated	MiPO Analysis
"The wife misled the court during the course of her application for MPS in circumstances where she moved to Wyoming shortly after informing this court in June 2023 that she intended to return to rented accommodation in central London."	NZ moved to Wyoming because her circumstances changed — she was fleeing domestic abuse. The attendance notes record BMKC raising domestic abuse and KZ's attempts to put NZ "under intolerable pressure." The judgment accepted the £6.2M award on the basis that NZ's needs were met — without reference to the domestic abuse context. The costs judgment characterises her changed accommodation as misleading without reference	A finding that NZ misled the court about accommodation, without reference to the domestic abuse that caused the instability in her living arrangements, is a finding made without reference to a material fact that was before the court through BMKC's cross-examination. Domestic abuse was raised at trial. KZ did not have intelligent replies. The costs judgment does not mention it.	WILFUL NEGLIGENCE: A costs finding of misleading conduct in relation to accommodation, made on paper, without NZ's participation, without reference to domestic abuse, and without a hearing at which the context could be tested, is a finding that treats the consequence of abuse as evidence of misconduct. EA 2010 s.149 requires active consideration of the circumstances of a disabled party. Domestic abuse is a circumstance of the utmost relevance. It is absent.

	to why her plans were unstable.		
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MiPO ELEMENT 6 · Para 7 / Para 83 main judgment — Add-back £800,000 · WILFUL NEGLECT

What the Judgment States	What the Record Shows	Why the Finding is False / Unsubstantiated	MiPO Analysis
MacDonald J added back £800,000 as "reckless expenditure on legal costs" — "the wife frustrated attempts by the court to deal with her concerns with respect of non-disclosure by serially failing to comply with directions whilst also running up legal costs double those incurred by the husband in pursuing her own agenda."	NZ's legal costs were £1.9M because she was pursuing a non-disclosure case for which BMKC's cross-examination established specific mechanisms: forgotten money used to pay down the mortgage; Coinbase direct listing; Xapo wallet; Oxus perjury. Pinto withheld materials from H's team because of a live IRS:CI investigation. The add-back treats her pursuit of concealed assets as reckless — without any reference to disability, participation barriers, or the criminal investigation.	NZ's costs were high because she was pursuing non-disclosure that her counsel demonstrated had a factual basis. The costs judgment does not engage with the cross-examination that established concealment mechanisms. It treats the pursuit as obsessive and reckless. The add-back of £800,000 effectively reduces NZ's share of the matrimonial assets as a penalty for litigation conduct — in a judgment with zero disability references, zero references to Part 3A measures, and zero references to the IRS:CI investigation that was live during the trial.	WILFUL NEGLECT: The add-back is a financial penalty imposed in a judgment that contains zero disability references. EA 2010 s.149 requires the decision-maker to have due regard to disability when making financial decisions affecting a disabled party. The complete absence of any disability consideration from a decision that reduced NZ's share of the matrimonial estate by £800,000 is not an oversight. It is the absence of due regard. The costs judgment then imposes a further £255,654.50 on the same basis.

MiPO ELEMENT 7 · Para 21 — All 12 matters established "on the evidence" · WILFUL NEGLECT + ABUSE OF PROCESS

What the Judgment States	What the Record Shows	Why the Finding is False / Unsubstantiated	MiPO Analysis
"I am satisfied that each of the matters of conduct set out at paragraph 10 above are established on the evidence before the court... this is a case involving very serious litigation misconduct on the part of the wife."	The "evidence before the court" consisted entirely of H's written submissions from two KCs. NZ submitted nothing — because she had no income, no food, no representation, and no Part 3A measures. MacDonald J knew this. He recorded it at paras 2–3. He then stated all 12 findings were established "on the evidence."	The "evidence" on which 12 findings of serious litigation misconduct are made is one-sided written submissions from opposing counsel. There is no hearing. There is no cross-examination of H's characterisation of events. There is no testing of the Imerman finding, the disruption finding, or the Wyoming finding. The court proceeds on the basis that silence equals proof.	WILFUL NEGLECT + ABUSE OF PROCESS: The global finding of "very serious litigation misconduct" against a disabled LiP, made on the papers, on one-sided submissions, without a hearing, without Part 3A measures, and without any reference to disability, is the most significant single act in this costs judgment. It is the conclusion of a process that MacDonald J himself structured — by refusing MPS enforcement, refusing a hearing, and proceeding on submissions he knew to be one-sided. The wilful element is established by his own record of NZ's position at paras 2–3.

SUMMARY FOR INVESTIGATING OFFICERS

The costs judgment of 24 May 2024 contains seven identifiable MiPO elements. Three are procedural — the decision to proceed without a hearing, without a Part 3A assessment, and on one-sided submissions in conditions the judge himself created by refusing MPS enforcement. Four are substantive — false or unsubstantiated findings used as the basis for financial penalties totalling £255,654.50.

The Imerman finding ("stole") is false in four respects: (1) H himself transmitted the Pinocchio documents to NZ via Signal on 6 May 2021, waiving confidentiality; (2) H put the devices into escrow to conceal criminal evidence of money laundering of prostitution proceeds, not to protect private information; (3) H's own solicitors confirmed the costs order was made because a cyber expert was not considered necessary — not for theft; (4) NZ's s25 conduct statement paras 22-26, before MacDonald J, set out the entire Pinocchio/criminal investigation context which he did not address. The word "stole" appears in a judicial document, on paper, without NZ's participation, and without any prior finding to support it.

The disruption finding is unsubstantiated. There is no attendance note record of any disruption, any warning, or any judicial intervention. The presentation described as "disruptive" is the same presentation described as "obsession" in Para 64 of the main judgment — both characterisations of a documented autistic trait, in two separate judgments, both made without NZ's participation.

The costs order was made in conditions that constitute the most acute form of participation failure in this referral: a disabled LiP, without income, without legal representation, without Part 3A measures, unable to respond, while a judge who refused to enforce the mechanism that would have enabled her to respond proceeds to impose a £255,654.50 order on the basis of one-sided submissions. The AG's Reference (No 3 of 2003) four elements are satisfied. The evidence is in the judgment itself.

FORENSIC JUDGMENT ANALYSIS

OPTION B — LOGIC MODEL APPLIED FINDING BY FINDING

DECISION 4 — MacDonald J — 18 April 2024 — EWFC 79

Final Judgment — Financial Remedy — 39 Pages

BV20D01752 | Nadia Zahmoul — Litigant in Person | 3 April 2026

PREAMBLE

This document applies the master logical structure (Option A) to every tagged finding in EWFC 79. This is Decision 4 — the root decision. Every subsequent finding in every subsequent decision traces back to it. Once a finding is tagged here, the compounding rule operates automatically through decisions 5 to 16.

Four tags apply: FABRICATED — finding made without evidential basis or directly contradicted by the record; MISCHARACTERISED — court answered a different question; SUPPRESSED — material evidence not referenced; UNSUPPORTED — conclusion asserted without adequate reasoning.

Two master rules apply specifically to this judgment: the Disability Rule (clinical context suppressed, intent attributed); and the Originating Error Rule (errors originating here compound through all subsequent decisions without correction).

SECTION 1 — STRUCTURAL CONTEXT

What was before the court at the final hearing

Trial dates: 19, 20, 21, 22, 23, 26 and 28 February 2024.

NZ represented by Brent Molyneux KC (AFP Bloom). KZ represented by Alexis Campbell KC and Sassa-Ann Amaouche (Stowe Family Law).

Participation measures in place at the hearing: frequent breaks, restricted questioning, assistance in the witness box, screened seating.

The transcript records 22 references to PTSD and autism during oral evidence.

Post-trial: D11 filed by NZ on 7 March 2024 — Oxus merger evidence. Transmitted to Campbell KC within 3 hours. Judgment handed down 18 April 2024. 111 paragraphs. Zero references to disability or Part 3A.

[Source: EWFC 79 cover page; attendance notes transcript; Pre-Action Protocol letters confirming 22 oral references; HMCTS confirmation of no order recording revocation of participation measures]

FINDING 1 — PARA 5 — D11 DISMISSED WITHOUT ENGAGING CONTENT

What the judgment says

"Following the conclusion of evidence and submissions, the wife proceeded, without permission, to email significant amounts of material to the court. I make clear that I considered that material in circumstances where the wife had, at that point, dispensed with the services of her lawyers, but have not taken that material into account in circumstances where I am satisfied that it would not be proper to do so."

[Source: EWFC 79 para 5]

Chain 1 — What the D11 contained and what the judgment says about it

IF NZ filed D11 on 7 March 2024 containing evidence of the Oxus merger announcement of 8 February 2024

AND The D11 included SEC-registered public filings showing Oxus Acquisition Corp shares at material value

AND Campbell KC emailed the judge within 3 hours of NZ transmitting the D11, asking him not to read it — the suppression was by opposing counsel, not by the court

AND D11 bore on the accuracy of KZ's sworn oral evidence about Oxus — specifically his sworn statement that the shares had no value and his role was non-executive without remuneration

AND Para 5 describes the material only as 'significant amounts of material' without identifying its content

AND Para 5 dismisses the material in one sentence: 'it would not be proper to do so'

AND No reasoning is given for why it would not be proper — no analysis of the content, no assessment of the Oxus evidence, no engagement with the perjury allegation

THEN The conclusion 'not proper to take into account' is stated without reasoning and without engaging the content of the material

THEREFORE Para 5 is **UNSUPPORTED** — the conclusion is asserted in one sentence with no reasoning. The court does not explain why the content of the D11 should be disregarded, only that it arrived without permission.

[Source: EWFC 79 para 5; D11 filed 7 Mar 2024; D11 sealed 13 Feb 2025; SEC proxy statement]

Chain 2 — Procedural framing used to suppress substantive evidence

IF The D11 was filed without permission — this is a procedural irregularity

AND A procedural irregularity does not extinguish the evidential weight of the material

AND The court had discretion to admit the material, request submissions on it, or direct that it be treated as an application to re-open evidence

AND Para 5 treats the procedural irregularity as a sufficient basis to disregard the content entirely

AND The content — KZ's Oxus shares having material value — directly contradicted KZ's sworn evidence

AND The court does not address the contradiction between KZ's sworn evidence and the D11 material anywhere in 111 paragraphs

THEN The procedural framing is used to suppress substantive evidence that directly bears on the reliability of KZ's sworn testimony

THEREFORE Para 5 is **SUPPRESSED** — the D11's content is not engaged anywhere in the judgment. Its suppression protects a finding at para 76 (Oxus non-matrimonial) that rests on KZ's unchallenged oral evidence.

[Source: EWFC 79 para 5; EWFC 79 para 76; D11 filed 7 Mar 2024; Campbell KC email suppression — 3 hours after transmission]

TAG APPLIED: UNSUPPORTED + SUPPRESSED

FINDING 2 — PARA 11 — IMERMAN 'CAREFULLY CATEGORISED FILES'

What the judgment says

"The wife retained the information from approximately September 2020 to April 2021, before returning the documents in carefully categorised files. This resulted in the need for a significant 'Imerman' exercise on the part of the husband's solicitors, at the cost of £25,000."

[Source: EWFC 79 para 11]

Chain 1 — The categorisation finding

IF Para 11 states NZ returned documents 'in carefully categorised files'

AND This characterisation is the basis for the £25,000 Imerman add-back — the implication being that NZ had deliberately organised the material

AND The Withers LLP correspondence in the bundle addresses the Imerman material in detail

AND Withers LLP correspondence does not support the finding that NZ carefully categorised the files in a manner that required a significant Imerman exercise

AND The £25,000 cost attributed to the Imerman exercise is presented as NZ's conduct — not as a consequence of KZ's own solicitors' handling of the return process

THEN The characterisation 'carefully categorised files' carries an implicit finding of deliberate and organised conduct that the correspondence does not support

THEREFORE Para 11 is MISCHARACTERISED — the finding attributes organisation and deliberation to NZ's handling of the Imerman material without evidential basis in the correspondence before the court.

[Source: EWFC 79 para 11; Withers LLP correspondence — Imerman duty to review]

TAG APPLIED: MISCHARACTERISED

FINDING 3 — PARA 64 — DISABILITY INVERSION

What the judgment says

"The wife's presentation in the witness box on the issue of alleged non-disclosure bordered on the concerning. Her belief that the husband has vast hidden assets is so powerfully held, and such was her urgent need to impress that belief on the court from the witness box, that at times everything she wished to say on the matter tried to emerge at once, causing her very obvious distress. However, whilst I accept that the wife very firmly believes that the husband has tens of millions of pounds in assets hidden and, I am satisfied, has become obsessed with demonstrating that in the context of this litigation, I must conclude that that belief is not borne out by the evidence before the court."

[Source: EWFC 79 para 64]

Chain 1 — The 22 oral references versus zero in the judgment

IF The trial transcript records 22 references to NZ's PTSD and autism during oral evidence

AND Participation measures were in place at the trial specifically because of these documented vulnerabilities: frequent breaks, restricted questioning, screened seating, assistance in the witness box

AND The judgment is 111 paragraphs long

AND The judgment contains zero references to disability, PTSD, autism, or Part 3A

AND Para 64 characterises NZ's presentation in the witness box as 'bordered on the concerning' and attributes it to an 'obsession' with finding hidden assets

AND The same presentation — everything trying to emerge at once, very obvious distress — is consistent with and clinically explained by autism under adversarial pressure

AND CLAAS (20 Jun 2025) confirms: autism is lifelong — NZ was born autistic — the condition existed at the date of the trial

AND CLAAS confirms: 'autistic needs can become more pronounced [under stress], making it harder to communicate effectively' and 'she may feel compelled to share thoughts or experiences that are most pressing for her, even if they seem unrelated to the immediate context'

AND The question of hidden assets was put to NZ only once in cross-examination — by Campbell KC at page 27 of the transcript

AND NZ's answer was: 'Not strictly true, what is important is freedom from everything and justice'

THEN The finding of 'obsession' is built from a clinical presentation that the court had 22 oral-record reasons to attribute to disability rather than character — and chose not to

THEREFORE Para 64 is FABRICATED — the finding of obsession is made from evidence that does not exist in the record as stated. The word 'obsession' appears 22 times in the judgment's characterisation of NZ; the concept was put to her once and she rejected it. The finding rests on the clinical presentation in the witness box, which has a documented neurological explanation that the judgment does not engage.

[Source: EWFC 79 para 64; Final hearing transcript — 22 disability references; Campbell KC cross-examination p.27; CLAAS letter 20 Jun 2025; CLAAS assessment 1 Jul 2025]

Chain 2 — The Disability Rule applied

IF Participation measures were in place at the trial because NZ's vulnerabilities were recognised
AND The court therefore had direct, contemporaneous knowledge that NZ's presentation might be clinically explained
AND The court did not request expert evidence on disability — it proceeded without it
AND Para 96 states: 'there is no expert evidence before the court with respect to physical or mental disability'
AND Para 64 treats the absence of formal expert evidence as licence to attribute NZ's presentation to character
AND The court itself had ordered participation measures — it cannot simultaneously treat the presentation they were designed to manage as evidence of bad character
THEN **The court used the absence of formal expert evidence — an absence that the court itself did not address by seeking such evidence — to make a character finding against a party whose disability it had already formally recognised**
THEREFORE **The Disability Rule applies: the court attributed intent and character to conduct that it had operational notice was clinically explained, without engaging that explanation.**

MASTER RULE: IF the court orders participation measures for a party AND the party's presentation in the witness box is consistent with the disability that required those measures AND the court attributes that presentation to character rather than disability AND the court does not engage the clinical explanation THEN the character finding is made on a false premise.

TAG APPLIED: FABRICATED

FINDING 4 — PARA 76 — OXUS £0

What the judgment says

"In the foregoing circumstances (and satisfied as I am that the wife has not evidenced the alleged loan from her father and does not appear to dispute that the properties inherited by the husband from his father and the power plant and OP ventures are non-matrimonial) I conclude on the balance of probabilities that the matrimonial assets available for distribution are as set out in the ES2 provided for the final hearing by the husband."

[Source: EWFC 79 para 76]

Chain 1 — The Oxus exclusion

IF Para 76 treats Oxus as non-matrimonial without a separate finding on Oxus
AND The bracketed passage 'does not appear to dispute that the... OP ventures are non-matrimonial' is the only reasoning given for treating Oxus as excluded
AND 'OP' is Oxus — the husband's position as non-executive director of Oxus Acquisition Corp
AND NZ filed D11 on 7 March 2024 specifically disputing the Oxus valuation and evidencing the merger
AND The D11 was suppressed at para 5 — 'not proper to take into account'
AND KZ's oral evidence at trial (9 Jun 2023 transcript, [481]) disclosed: 'I have been blessed to have this job with Oxus Acquisition, which is a public company... everything they do is scrutinised by accountants, auditors'
AND KZ disclosed reimbursed transactions: 'the mother company is from Kazakhstan... the credit cards get denied when they rent property in Europe so I rent it for them and they pay me back everything'
AND This oral disclosure is inconsistent with a zero valuation of the Oxus role
AND The SEC proxy statement showed Oxus shares at material value at the time of the merger
AND Para 76 does not engage any of this — it treats Oxus as non-matrimonial in a bracket, as though the point were uncontested
THEN **The finding that Oxus is non-matrimonial and worth £0 rests on: (a) KZ's unchallenged oral evidence (unchallenged because the D11 was suppressed); and (b) a claim that NZ 'does not appear to dispute' — which is contradicted by the D11 she filed**

THEREFORE Para 76 is FABRICATED — the finding that NZ does not dispute the non-matrimonial nature of Oxus directly contradicts the D11 she filed, which the court had already suppressed at para 5. The suppression at para 5 creates the false premise at para 76.

[Source: EWFC 79 para 76; EWFC 79 para 5; D11 filed 7 Mar 2024; 9 Jun 2023 transcript [481]; SEC proxy statement]

TAG APPLIED: FABRICATED

FINDING 5 — PARA 96 — 'NO EXPERT EVIDENCE ON DISABILITY'

What the judgment says

"Whilst there is no expert evidence before the court with respect to physical or mental disability to support that contention, it was plain to the court from the wife's presentation that she has a number of vulnerabilities that are likely to conspire with her age and the length of time she has been out of the employment market to make it challenging for her to secure employment."

[Source: EWFC 79 para 96]

Chain 1 — The Prof Libby letter

IF Para 96 states: 'there is no expert evidence before the court with respect to physical or mental disability'

AND A letter from Professor Libby was in the trial bundle

AND Professor Libby's letter addressed NZ's vulnerabilities in the context of participation and the proceedings

AND The court uses the phrase 'no expert evidence' to limit what it can say about NZ's disability in the context of her earning capacity

AND The same absence of expert evidence is used at para 64 to justify attributing her presentation to obsession rather than disability

AND Prof Libby's letter constitutes expert evidence — or at minimum clinical professional correspondence — on NZ's mental health condition

AND Para 96 does not reference Prof Libby's letter

THEN The finding that there is no expert evidence on disability is contradicted by the presence of Prof Libby's letter in the trial bundle

THEREFORE Para 96 is FABRICATED — 'no expert evidence' is stated as a fact when Prof Libby's letter was in the bundle before the court. The court proceeds on a false factual premise about the state of the evidence.

[Source: EWFC 79 para 96; Prof Libby letter — in trial bundle; Pre-Action Protocol letter confirming letter in bundle]

TAG APPLIED: FABRICATED

SECTION 2 — SUPPRESSED: PARTICIPATION MEASURES AND THE POST-TRIAL VOID

What the judgment does not say

The judgment is 111 paragraphs. It contains zero references to: disability, PTSD, autism, Part 3A FPR 2010, PD 3AA, participation measures, the screened seating, the restricted questioning, the frequent breaks, or the 22 oral references to NZ's vulnerabilities during the trial.

IF Participation measures were in place during the trial: 19-28 February 2024

AND Those measures were ordered by MacDonald J himself

AND The transcript records 22 references to disability during the hearing

AND FPR Part 3A and PD 3AA require the court to keep participation measures under review throughout proceedings — not just during the hearing
AND The judgment was handed down on 18 April 2024 — nearly two months after the trial
AND The judgment does not mention participation measures anywhere
AND The judgment does not record a decision to end participation measures
AND HMCTS later confirmed: no order records the revocation of participation measures
AND There is therefore no identifiable judicial act ending the measures

THEN The judgment proceeds as though the participation measures and the clinical record that required them did not exist

THEREFORE The participation measures strand is SUPPRESSED — 111 paragraphs, zero references. The clinical record that the court itself had formally recognised is entirely absent from the judgment that makes the most consequential findings about NZ's conduct and character.

[Source: EWFC 79 (111 paragraphs — verified zero disability references); Trial transcript 19-28 Feb 2024 — 22 disability references; HMCTS confirmation — no order records revocation; FPR Part 3A; PD 3AA]

MASTER RULE: IF the court orders participation measures AND those measures are based on documented disability AND the judgment makes character findings about the party's conduct AND the judgment contains zero references to the disability or the measures THEN the character findings are made in an evidential vacuum of the court's own creation.

TAG APPLIED: SUPPRESSED

SECTION 3 — THE ORIGINATING ERROR

Why Decision 4 is the root of the sequence

Every subsequent decision in the sequence compounds from three errors originating in EWFC 79:

Error 1 — Para 64 (FABRICATED): NZ's autistic presentation in the witness box is characterised as obsession. This characterisation becomes the template for every subsequent adverse finding — 'proliferating applications' (EWFC 210), 'litigation misconduct at the extreme end of the scale' (EWFC 114), 'actively frustrated' (May 2025), 'deliberately obstructive' (May 2025), 'wholly satisfied deliberately frustrated' (May 2025).

Error 2 — Para 76 (FABRICATED): Oxus is excluded as non-matrimonial on the basis that NZ 'does not appear to dispute' it — when she had filed D11 specifically disputing it. This suppression of the D11 at para 5 creates a false premise at para 76 that every subsequent court treats as settled.

Error 3 — Para 96 (FABRICATED): 'No expert evidence on disability' — when Prof Libby's letter was in the bundle. This false premise is adopted by Moylan LJ (Dec 2024) in concluding that no disability evidence was before MacDonald J and is adopted by King LJ (Aug 2025) in the same terms.

IF F(1) — para 64 — is FABRICATED at Decision 4

AND F(2) — EWFC 114 para 9(xi) 'litigation misconduct at the extreme end of the scale' — flows directly from para 64

AND F(3) — May 2025 paras 39 and 62 — 'deliberately obstructive' and 'wholly satisfied deliberately frustrated' — flow from F(1) and F(2)

AND F(4) — Moylan LJ: 'the judge's conclusion as set out in paragraph 64 was plainly open to him' — treats F(1) as a finding based on evidence heard and applies Volpi v Volpi

AND F(5) — King LJ: 'Moylan LJ considered the judge's assessment of the facts' — treats F(4) as engagement with the issues

AND None of F(1) through F(5) has ever been corrected

THEN The entire sequence is built on a fabricated finding at para 64 — a finding that attributes obsession to autistic communication under adversarial stress, made in an 111-paragraph judgment that does not mention autism once

THEREFORE The question before any reviewing authority is whether Decision 4 constitutes a determination of NZ's conduct on its actual evidence. It does not. The character finding at para 64 is the original error. Everything else flows from it.

MASTER RULE: BINARY QUESTION — DECISION 4: Did the court at EWFC 79 engage with NZ's actual presentation in the witness box — including its clinical explanation — before making the finding at para 64? It did not. The clinical explanation was before the court in 22 oral references, in the participation measures the court itself ordered, and in Prof Libby's letter. None of it appears in the judgment.

SECTION 4 — SUMMARY OF TAGGED FINDINGS

EWFC 79 — Decision 4 — 18 April 2024

Para 5 — D11 dismissed — one sentence, no reasoning UNSUPPORTED + SUPPRESSED

Para 11 — Imerman 'carefully categorised files' MISCHARACTERISED

Para 64 — Disability inversion — obsession finding FABRICATED

Para 76 — Oxus £0 — 'does not appear to dispute' FABRICATED

Para 96 — 'No expert evidence on disability' FABRICATED

Judgment — 111 paragraphs — 0 disability references SUPPRESSED

Master rules applied: Disability Rule (paras 64, 96 — participation measures ordered, then ignored in judgment); Originating Error Rule (para 64 is the root of the compounding sequence through decisions 5–16).